

24CV05259 PoloDonkey LLC v. Quiel

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-05-13

Motion: 1. Motion to vacate the judgment, vacate or modify the judgment, or for a new trial; 2. Motion for judgment notwithstanding the verdict.

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Tentative Ruling: PoloDonkey LLC v. Quiel

Case Number

24CV05259

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 05/13/2026 - 10:00

Nature of Proceedings

1. Motion to vacate the judgment, vacate or modify the judgment, or for a new trial; 2. Motion for judgment notwithstanding the verdict.

Tentative Ruling

For Plaintiff PoloDonkey, LLC: Todd A. Amspoker, Jeff F. Tchakarov, Price Postel & Parma LLP

For Defendants Tyler N. Quiel and Diana Sandoval: Stephen M. Sanders, Jeff G. Coyner.

Co-Counsel; Joseph A. LeVota

RULING

For the reasons set out below Defendants' Motions are DENIED.

ANALYSIS

Defendants' motion for an order to

vacate the void judgment as to unpled, unserved Trust and Trustee capacities under California Code of Civil Procedure ("CCP") § 473(d);

vacate or, in the alternative modify the judgment under CCP 663, and

for new trial under CCP § 657.

Filed 4/13/26; 22 pages; summarized: This motion is brought under California Code of

Civil Procedure §§ 473(D), 663, and 657, which authorizes and specifies the procedures to vacate and modify the judgment of a case. The CCP Sections also provide for procedure to move this Court for a new trial. The present motion also follows California Rules of Court, Rule 3.1112 under regular motion practice procedures. This motion is based on this Notice, Notice of intention to move for new trial (Cal. Rules of Court, Rule 3.160), the attached Memorandum of Points and Authorities, the Declaration of Stephen M. Sanders, the Declaration of Tyler N. Quiel, the Declaration of Diana Sandoval, the pleadings on file in these actions, and such further evidence or argument as may be considered by the Court at the hearing.

This motion seeks correction of three fundamental structural defects in the judgment entered on March 18, 2026 ("Judgment"):

First, the Judgment improperly purports to bind Defendants in their capacities as trustees of the Sandoval Quiel Revocable Living Trust and to reach trust-owned property even though no trustee capacity was ever pleaded, served, or afforded an opportunity to appear and defend. The supposed expansion rests entirely on a post-trial order filed March 2, 2026, granting a mid-trial request to deem all pleadings amended to conform to proof under Code of Civil Procedure sections 469 and 470 so as to add the trust and trustee capacity. But CCP §§ 469 and 470 are variance statutes designed to cure minor discrepancies between pleading and proof in claims actually tried between existing parties; they do not authorize the belated joinder of an unpleaded trustee capacity or the imposition of relief against trust property without proper pleading, service, or due process.

Here, those variance provisions cannot confer personal jurisdiction or substitute for proper joinder and service, so the Judgment purporting to bind Defendants as trustees is void under Code of Civil Procedure section 473(d) for lack of personal jurisdiction and denial of due process and must be vacated. Separately and additionally, CCP sections 469 and 470 were misapplied, resulting in an incorrect and erroneous legal basis that independently warrants relief under Code of Civil Procedure section 663.

Second, during trial, Plaintiff PoloDonkey, LLC's expert Eva Turenchalk

coordinated with Santa Barbara County Planning & Development Department's Senior Planner Brown to alter Defendants' Accessory Dwelling Unit plans applied for under 3200 Serena Avenue, Carpinteria CA by striking the 3200 Serena and replacing it with "3196" for next-day impeachment before Defendants ever received the plans; Fire Marshal Michael LoMonaco then falsely testified, during improper rebuttal, that he personally made these changes, and post-trial Public Records Act requests revealed spoliation of key Turenchalk-Brown communications. Together, these acts constitute fraud on the court, trial by ambush, and deliberate manipulation and fabrication of evidence, warranting vacatur or modification of

the Judgment under Code of Civil Procedure section 663 because the decision is not supported by the true facts, and, at minimum, a new trial under section 657.

Third, systematic irregularities cumulatively deprived Defendants of a fair trial: a mandatory reading burden applied to Defendants' exhibits but waived for Plaintiff; third-party hearsay admitted to show Plaintiff's thread while Sandoval's identical state-of-mind testimony was struck; Defendant's sole witness (David Tetzlaff) was tightly restricted while Plaintiff's witnesses were largely unrestricted, including undisclosed expert Fire Marshal LoMonaco, PPP's own client; and, after initially denying equitable easement relief, the Court later granted an unpled equitable easement. Combined with selective motion-in-limine enforcement, systematic striking of Diana's testimony, questions surrounding the Court's reference to a property view, and jury-selection concerns, these constitute irregularities requiring a new trial under CCP § 657.

The Judgment also exceeds both the pleadings and the verdict by imposing mandatory and prohibitory injunctions on unpled and untried theories and forms of relief, including compelling Defendants to sign an Owner/Applicant Consent Form and "any other documents" requested by the County, requiring perpetual and immediate maintenance of the alleged easement area, forcing relinquishment of a lawful mailbox, and granting an unpled equitable easement after denying that relief during trial and despite Plaintiff's inability to satisfy the "innocence" element—particularly in light of Plaintiff's own survey acknowledging that the bridge extends outside the disputed easement area. These vague and untried injunction terms, never pleaded, tried, or proven, warrant vacatur under CCP § 663.

This action was pled, served, and tried solely against Tyler N. Quiel and Diana Sandoval in individual capacities, not against any trustee capacity or the Sandoval Quiel Revocable Living Trust. The Complaint nowhere identifies the Trust or trustees. The public docket showed only individuals; no amended complaint, new summons, or proof of service issued naming trustees. Trustee issues are being litigated separately in Case No. 24CV04379, ("Lead Case") in which the caption names Diana Sandoval, as trustee of the Sandoval Quiel Revocable Living Trust. When the Trust and Sandoval in the Lead Case sought consolidation, Plaintiff, appearing as Defendant in the Lead Case, opposed consolidation, thereby excluding the trustee from this action. On October 29, 2025, the Court denied consolidation. This pretrial ruling confirmed that trust-capacity issues and trust property remained in the Lead Case, and the present case ("24CV05259") would proceed against individuals only.

The trial record further confirms that the Plaintiff expressly proceeded against the individuals not the Trust or Trustee capacity. On the morning of January 5, 2026, Plaintiff's counsel admitted to the Court that "[t]he property is owned by their family trust." Counsel hesitated on dismissing the Doe defendants, the Court explicitly warned that adding a new party would require starting all over again. Faced with the choice of starting over to properly serve the Trust and trustees, Plaintiff's counsel stated: "It's okay, your Honor. Let's dismiss the Does." By dismissing the Does, the parties and Court proceeded on the understanding that the Trust and trustees were not parties to this action.

Throughout trial, including in the jury verdict forms, the case was tried solely against the

individuals, and even post-trial the Proposed Statement of Decision continued to identify only the individuals.

Defense Was Limited to Individuals, Not Any Trust or Trustee Capacity. Plaintiff's own trial insurance exhibit confirms that, while the Policy's Conditions automatically extend coverage to a later trust owner, the actual defense engagement was framed as "individuals only."

The First American Homeowners Policy No. 5026100-6273661 lists only Quiel and

Sandoval as the named insureds, and while Condition 2(b)(3) extends coverage to a later trust owner, the reservation-of-rights letter that actually defines the defense in 24CV05259 identifies only the individuals as the insureds being defended in this lawsuit, never the Trust or any trustee capacity "First American will retain counsel to represent you in the defense of the PoloDonkey, LLC v. Quiel and Sandoval lawsuit." and "First American is in the process of retaining counsel to represent you." Carrier-appointed counsel's statement of no objection therefore ran solely to the individual

insureds; he had no separate retainer from the Trust or trustees and no engagement as trust counsel in the present case, so any purported consent to bind a trustee capacity exceeded the scope of that authority and cannot supply the missing personal jurisdiction. Further, Defendants were never informed of, and had no knowledge of, any purported stipulation to add the Trust or trustee capacity and thus could not and did not authorize or consent to such a stipulation.

A judgment that purports to reach a nonpleaded, nonserved trust and trustee capacity based on the no objections from counsel whose written authority runs only the individual insureds, is void for lack of personal jurisdiction and violates due process. Counsel cannot, by acquiescence, confer jurisdiction over a legal capacity he was never retained or authorized to represent. (See, e.g., *Portico Management Group, LLC v. Harrison* 202 Cal. App.4th 464, 476-477 (FN7)).

Improper Midtrial Attempt To Add Trustee Capacity. Plaintiff waited until after the jury was sworn to improperly attempt to bind the Trust into this case through a variance statute. On January 8, 2026, two days into trial, Plaintiff filed a CCP §§ 469 and 470 motion, still captioned only against the individuals. Plaintiff's memorandum concedes:

"Plaintiff is suing Defendants in their individual capacity"; "the Complaint names Defendants only in their individual capacities"; and "Defendants' real property... is owned by Defendants in their capacity as trustees." Because "trial is in progress," Plaintiff expressly "does not seek a noticed pretrial amendment under CCP section 473," and asks the Court, "during trial and without the necessity of a noticed motion," to deem the pleadings amended so that Defendants are "bound both individually and in their capacities as trustees." In substance, Plaintiff invoked a variance statute designed to clean up minor pleadingversusproof issues and attempted to use it as a shortcut to add an entirely new capacity, trustees of a separate revocable trust holding title, without service, without proper joinder, and without any appearance by counsel authorized to speak for the Trust and trustee capacity.

No Trust or Trustee Representation in Early Morning Meeting. The Court purportedly granted this midtrial expansion in an earlymorning proceeding at which no counsel with authority to represent the trustee capacity was present, and neither Defendants were present or even told about the meeting. That stipulation accomplishes in form what the law does not permit in substance. A lawyer whose authority is expressly limited to defending the individual insureds in the present case, on terms dictated by conditional reservationofrights letters that never acknowledge any trust defense, cannot waive pleading and service and conjure jurisdiction. The result is not just a technical defect; it explains what happened next.

Before the Trust was added, Defendant's counsel told the Court at the pretrial conference that the defense caseinchief would take about four days. Once the Trust was allegedly added midtrial, and the risk shifted squarely onto trustowned title that the carrier had never agreed to fully defend, the defense abruptly collapsed. Counsel called a single witness and rested after roughly 24 minutes. This sudden contraction, from a promised fourday defense case-in-chief to a 24minute skeleton defense with only one of seven identified witnesses, underscores the prejudice caused by adding a trustee capacity midtrial without proper joinder or counsel specifically authorized to represent that capacity.

This procedural bypass deprived the Trust of its right to a meaningful defense. The purported addition of the Trust mid-trial, without service of process or authorized counsel, resulted in a defense that lasted mere minutes for a property-interest case originally estimated at four days. In short, the same structural flaw that deprives the Court of jurisdiction over the trustee capacity, the absence of proper joinder, service, and authorized counsel, also produced the collapse of the defense once the Trust was pulled in. The purported judgment that alleges to bind Defendants in their capacities as trustees and operate directly on trustowned real property is therefore void under CCP § 473(d).

Pre-Trial Record: 3200 Serena Officially Assigned to Defendants' Parcel. On February 23, 2023, Carpinteria-Summerland Fire Protection District Fire Inspector Todd Jenkins assigned 3200 Serena Avenue as the secondary address for Defendants parcel APN 005-340-006, via formal letter and map distributed to the Assessor, USPS, utilities, water districts, County Planning, Fire Prevention, Elections, and the Sheriff. CSFD's address records and the County Assessor's system showed 3200 Serena as the secondary situs for APN 005-340-006, and the Assessor confirmed the address 3200 Serena was assigned to Defendants. The Assessor recognized 3200 Serena on Defendants' parcel and levied property taxes accordingly for over 2.5 years while USPS treated 3200 Serena Avenue as a valid, active mailing address for Defendants and approved Defendants' new 3200 Serena mailbox, pursuant to USPS requirements. Defendants submitted ADU permit applications in June 2025 using 3200 Serena in reliance on these consistent multiagency records and in August 2025 were denied

administrative appeals from CSFD based on direction from its "legal firm" and "legal department" later identified as Price Postel Parma. Defendants contend that Fire Marshal Michael LoMonaco and CSFD, acting with PPP were unlawfully attempting to revoke the 3200 situs in violation of Fire Code § 505.1.3 and state ADU protections, in effort to protect PPP's full paying client Polodonkey LLC, and on November 6, 2025, filed Case No. 25CV06984, a verified writ petition to preserve their address rights and to obtain appropriate relief regarding their ADU applications.

Timeline of Mid-Trial Fraud on Court

On November 24, 2025, County Counsel for Santa Barbara filed a Notice of Related Case to relate the Lead Case and the present action with Diana Sandoval et al. vs. County of Santa Barbara et al., Case Number 25CV06984 ("25CV06984"). On November 26, 2025, Defendants serve and file oppositions to relate the cases. On January 22, 2026, the Court orders the cases related to the Lead Case and the present action Case No 24CV05259.

On January 7, 2026, Diana Sandoval filed a declaration in 25CV06984 alleging Planning and Development Department of acting in bad faith after identifying a change to the permitting address occurring on the first day of trial, January 5, 2026.

On January 14, 2026, the permit log for Santa Barbara County shows a call with an interested party for permits 25CDP-00037/25BDP■00544.

On January 15, 2026, during trial, Defendant Diana Sandoval testified that she applied for her ADU with 3200 Serena Avenue because that was assigned to our parcel and the County said her ADU was approved as 3200, though she hasn't seen the approval. Asked about 3200 being reassigned to Plaintiff, Diana answers she's "not sure" because "the County finally approved my permits... with 3200," putting that claimed approval at issue.

On January 15, 2026, Brown emails Turenchalk zoning stamped ADU plans, and notes "I just got your voicemail," and will check on building plans. Turnechalk tells Brown to remove the remaining 3200 Serena address references and mark the bamboo fence unpermitted and linked to 25CDH■00031. Brown sends revised plans, saying she removed 3200 and synced zoning/BDP sheets but won't add to be permitted for 25CDH■00031 yet.

On January 15, 2026, Brown emailed Quiel stamping the ADU plans as approved. Thereon, Brown emailed Quiel again the revised ADU plans that supersede the prior set and uses the plans with the changed address reference from 3200 Serena to 3196.

On January 16, 2026, during Defendant Diana Sandoval's examination, she is shown Trial Exhibit 377, to which she responds to have never seen it before. Thereon, the Court excluded Trial Exhibit 377 as hearsay and lacking foundation. In addition, questioned if her approved ADU plans had 3200 Serena struck and 3196 added, Diana says she's unaware, has no plans, and notes Plaintiff's counsel has permitting documents she does not.

On January 16, 2026, Brown emailed Turenchalk updated ADU plans to reference a voicemail from Turenchalk and promising to check the building plans. Thereon, Brown emailed Defendant Tyler Quiel apologizing for the wrong 3200 Serena address and sent an alleged final plan showing 3196 on all pages despite that address being disputed. Later that day, on January 16, 2026, Turenchalk again leaves a voicemail to Brown wherein this confirms the existence of another voicemail.

At trial on January 16, 2026, during Defendant Tyler Quiel's testimony, Trial Exhibit 377 is shown, which Defendant states he has never seen before. "No, I've never seen it," and adds he hasn't checked his email and is concerned his permitting is "coming through your counsel" (PPP); the Court strikes the comment and does not admit the exhibit.

On January 16, 2026, during Turenchalk's testimony as a witness at trial, testifies that Brown emailed her Trial Exhibit 377 on January 15, 2026, and said that the plans show several cross■outs changing 3200 Serena to 3196. The Court excludes the

exhibit but lets Turenchalk's testimony in, and she does not reveal she directed many of those edits.

On January 20, 2026, Judge Anderle, in the middle of the trial, relates the Case 24CV05259 and 2506984 without addressing the objections filed by Defendants on November 16, 2025.

On January 20, 2026, LoMonaco (also a PPP client) says he received Defendants' ADU plans, saw 3200 Serena, crossed out 3200 and wrote 3196 as it was the only address that hasn't been contested. While Ex. 380 is excluded from the record, LoMonaco's verbal testimony reaches the jury and conflicts with Brown's role. Thereon, LoMonaco confirms PPP is fire district counsel. With respect to new material evidence, critical and not merely cumulative, and also not previously discoverable with reasonable diligence subject to CCP § 657, which evidence is strong enough to cause a differing result upon retrial, please also consider the following:

On February 10, 2026, the County labeled Public Records Request R015134-023026 a full release of all voicemails and notes on the two permits, 25CDP-00037 and 25BPD-00544, but the two logged voicemails between Turenchalk and Brown from January 14, 2026, and January 16, 2026, are missing.

Then on February 13, 2026, Defendants emailed David Villalobos about the documented but not included voicemails within the files to the supplemental PRA requests. Thereon, Villalobos replied that he will check in with Brown to see if they still have them on their phone, implicitly confirming their existence.

Then on February 17, 2026, Defendant sent a second demand for voicemails.

On February 18, 2026, Defendant sent the demand to Villalobos, stressing the original PRA scope, the full release label, the logged calls, and the emails confirming responsive recording. The voicemails, however, are still withheld, therefore characterized as spoliation and additional fraud with the Court.

Post-Trial Discovery: Spoliation

Defendants filed PRA Requests R015134-020326 and R015232-021326 seeking all communications between Turenchalk and Brown regarding the 3200 Serena ADU, including the two Turenchalk-Brown voicemails acknowledged in their emails and logged in County permit notes. The County nevertheless produced only one email thread, which supports the alteration of evidence and deletion of voicemails during active litigation.

PPP's Pattern of Conflicted Representation

Price, Postel & Parma, through attorneys Todd Amspoker and Mark Manion, simultaneously represents Plaintiff PoloDonkey, LLC, while also serving as legal counsel to CSFD. This conflict of interest placed PPP in a position to leverage its access to fire district personnel, county officials, and permit records to benefit its private client, PoloDonkey, LLC, and its principal, Robert Seidler. Such dual representation is prohibited under People ex rel. Dept. of Corporations v. Superior Court, (1999) 20 Cal.4th 1135, where the attorney's obligations to one client conflict with obligations to another. In 2015, PPP settled legal malpractice lawsuit brought by Montecito Water District and Carpinteria Valley Water District for \$3.85 million involving conflicted representation where PPP

used its position as counsel to one public agency to benefit private clients.

Legal Grounds for Relief

Here, PPP, acting through its expert planner Turenchalk, coordinated with County Planner Brown to alter Defendants' County permitting records during trial to fabricate and reshape evidence. The altered records were then introduced through Turenchalk's and LoMonaco's testimony to discredit Sandoval's credibility, even though, before Turenchalk's changes, the County's permits corroborated Sandoval's testimony that the County had approved the 3200 Serena permits. These alterations were made mid-trial, at PPP's expert's request, without notice to the permit applicants, and in direct response to Sandoval's testimony. The resulting fraud on the court tainted the fact-finding process and expanded post-trial relief in ways unsupported by the record.

LoMonaco's and Turenchalk's false testimony was material because it: (1) falsely attributed the permit alterations to a neutral government official, using the agency's (County and CSFD) apparent neutrality to undermine Sandoval's credibility and to conceal the coordination between PPP's expert and the County planner; (2) concealed PPP's role; and (3) gave the altered evidence the appearance of official legitimacy. This was especially prejudicial because PPP had previously argued that the fire district and other government agencies were irrelevant to the easement dispute when Defendants sought an ex parte trial continuance partly for the purpose of obtaining discovery from LoMonaco as a witness, thereby blocking Defendants from obtaining fire department discovery, and then later introduced the fire district in rebuttal for the sole purpose of discrediting Sandoval. That rebuttal testimony went beyond the pleadings, did not respond to any defense witness, and was aimed at stripping Defendants of their legal address rather than resolving any triable issue. Defendants could not have known the truth at trial because the Brown emails had not yet been discovered and Turenchalk's coordination was not disclosed.

PPP's dual representation of an interested material witness or party is impermissible and

subject to automatic disqualification under *SpeeDee Oil Change Sys., Inc. v. Superior Court*, (1999) 20 Cal.4th 1135, 1145-1150, where the attorney's obligations to one client conflict with obligations to another. PPP represents Plaintiff while simultaneously serving as CSFD legal counsel, whose address decisions were central to litigation. PPP used its CSFD access and County relationships to: obtain defendants' permit documents before defendants; coordinate official government document alterations; present CSFD's Fire Marshal as supposedly neutral rebuttal witness when he was PPP's own client.

PPP's fraud on the court prevented Defendants from (1) presenting the authentic

administrative record, (2) impeaching Fire Marshal LoMonaco with perjury evidence, (3) exposing PPP's conflict as CSFD counsel, and (4) challenging the altered plans and testimony as fabricated. As a result, the portions of the judgment compelling Defendants to sign the Owner/Applicant Consent for PoloDonkey's Coastal Development Permit and ordering removal and relocation of Defendants' lawful mailbox rest on the corrupted record and false credibility findings and must be vacated under CCP §§ 663 and 657.

Mandatory Reading Double Standard

This Court allowed Plaintiff 66 trial exhibits, over 509 pages while limiting Defendants to 28 trial exhibits and 99 pages. Despite five-to-one disparity, this Court never raised concerns about the length of Plaintiff's exhibits. Yet when Defendants moved to admit verified discovery responses (Exhibits 27, 29, 30), totaling under 20 pages, this Court blocked admission and stated: "I am not going to have a whole set of interrogatories in evidence. That means I have to read them all and consider them all... I'm not going to read it on my free time." This Court characterized this as legal obligation: "I am required to read every exhibit that is submitted, all the way through."

The Court did not apply the same standard to Plaintiff's Exhibit 340, text messages totaling approximately 100 pages that Defendants objected to as duplicative and sloppy. Instead, this Court admitted without review therein stating, "I am going to allow it. The jury can figure it out." Defense counsel further raised that, "I have to say on the record that I am feeling very biased against here... There seems to be a preference for the plaintiff's exhibits and not for mine." Excluded discovery responses contained Plaintiff's verified prior inconsistent statements regarding easement and bridge use, central to Defendant's abandonment theory.

Asymmetrical Hearsay and State of Mind Rulings

This Court permitted Plaintiff to introduce third-party hearsay to establish conduct while

blocking Defendants from presenting their defense. The Court repeatedly overruled Defendants' hearsay objections to emails from non-testifying neighbors and officials: "I am not admitting the exhibit for the truth of the matter... [but] to find out what the thread is here." Under this rationale, Plaintiff introduced hearsay from Robert Seidler, his niece and alleged employee Amanda Maluf, Ronald Macleod, Peter Haslund, and County officials, painting Defendants as uncooperative neighbors.

When Sandoval attempted to explain why she believed the bridge is unsafe by referencing

structural engineer's report designated as Trial Exhibit 107, the Court struck testimony: "My understanding, after reading this, was that the bridge was not safe for pedestrian or vehicle use because the structural engineer told me so." Court: "Next question... This is an expert opinion."

Plaintiff could use hearsay to appear neighborly, but Defendant could not explain her understanding of a report she commissioned. The Court silenced Defense's primary justification for maintaining the bamboo fence due to safety concerns after their structural engineer's report.

Unequal Witness Treatment and Plaintiff's Misuse of Rebuttal Testimony.

Defendants called one non-party witness, David Tetzlaff ("Tetzlaff"). Plaintiff called three

rebuttal witnesses (LoMonaco, Turenchalk, Seidler). The Court permitted Plaintiff to call Fire Marshal LoMonaco, as a rebuttal witness, despite defense objecting that he was an undisclosed expert offering technical opinions. This granted Plaintiff an additional expert without CCP § 2034.210 et seq. discovery disclosures.

When Tetzlaff, percipient witness and attorney, attempted to testify about his understanding of communications regarding abandonment of bridge access and the previous 2108 Polodonkey lawsuit, the Court sustained Plaintiff's objections as expert opinions and legal conclusions, striking testimony vital to Defendants' abandonment theory. The Court allowed Plaintiff's land use planner and PPP expert, Turenchalk to testify, at length, about her understanding. When Tetzlaff attempted identical testimony, his understanding of bridge access based on emails with Turenchalk, this Court

blocked it as speculation.

In the Final Statement of Decision, the Court dismissed Tetzlaff testimony: "His testimony

was not helpful to the case." That finding is untenable and legal error because the Court's own evidentiary rulings prevented the very testimony it later characterized as unhelpful. Tetzlaff's excluded testimony was the centerpiece of Defendants' abandonment theory and directly supported their contention that Plaintiff had intentionally relinquished any easement rights and future use in the previous 2018 Polodonkey lawsuit. By barring that testimony, the Court prevented Defendants from fully presenting their abandonment defense.

Additional Irregularities

This Court granted Plaintiffs Motions in Limine to bar discussing wealth disparity, fraud,

other lawsuits. Restrictions enforced against Defendants but not Plaintiff.

As detailed in Exhibit BE (Methodology and Objection/Striking Analysis), after normalizing for active examination time, the data show that objections by the defense were rejected at a rate approximately nine times higher than objections by plaintiff's counsel, and defense testimony or questioning was stricken at a rate roughly seven and a half times higher than comparable examination by plaintiff.

Over the course of January 15, 2026, the Court struck Sandoval's testimony repeatedly. The Court's repeated admonishments, "Miss Sandoval, I am asking you to do the best you can to answer the question directly. I know you are trying", created the impression Sandoval was evasive when she was attempting to comply with motion-in-limine restrictions, especially pertaining to Robert Seidler's fraud, while providing truthful testimony requiring context the Court had barred.

Another irregularity is where the proposed statement of decision states, "The Court, with

counsel, viewed the property prior to trial." When Defendants questioned this statement, the Court later emailed that it had intended to reach out to counsel about the visit but inadvertently omitted that step, leaving it unclear whether any visit occurred and raising a risk of bias if the Court viewed the property based solely on plaintiff's presentation.

The Jury selection process exhibited systematic exclusion of prospective Latino jurors.

Systematic exclusion without adequate race-neutral justification raises concerns. The Plaintiff used their strikes to eliminate Latino jurors and the Court assisted in dismissing prospective Latino jurors with minimal stated cause. Defendant Sandoval is a Latina woman.

Cumulative Prejudice

"[A] series of trial errors, though independently harmless, may in some circumstances rise by accretion to the level of reversible and prejudicial error." (People v. Hill (1998) 17 Cal.4th 800, 844). As detailed above, the one-sided exhibit, evidentiary, witness, and procedural rulings cumulatively deprived defendants of a fair trial and require vacating the judgment and ordering a new trial before a different judicial officer.

Judgment imposes relief never pleaded, tried, or proven.

The Judgment requires Defendants to sign/deliver Owner/Applicant Consent Form and any other documents required by the County. The Complaint sought declaratory and injunctive relief regarding easement rights and bamboo fence removal. It did not seek mandatory injunction compelling defendants to sign government permits or any other documents required by the County. No evidence was presented regarding what documents required by the County might entail, creating vague obligations and perpetual contempt exposure.

The Judgment further orders Defendants to remove their lawful mailbox, locate and install

"Plaintiff's old mailbox." The Complaint makes no mention of any mailbox. The Jury verdict addressed only whether Plaintiff had abandoned easements and not addressed mailbox placement or removal.

The Judgment bars "any immobile fencing or other unreasonable obstructions on the

Easement area at any time in the future" and requires "free access." What constitutes "other unreasonable obstructions" and "free access" is undefined, creating perpetual controversy and contempt exposure.

The Judgment also grants Plaintiff an equitable easement over Defendants' property, even

though the Court expressly denied equitable easement relief during trial and the issue was never pleaded, tried, or submitted to the jury. Nonetheless, at the close of evidence, the Court post hoc incorporated substantially the same equitable easement theory into the Judgment, in direct contravention of its prior ruling and without notice or an opportunity for Defendants to defend.

Defendants reasonably relied on the Court's denial in presenting their case, and as set out in Defendants' objections to the proposed statement of decision, Plaintiff cannot as a matter of law satisfy the required "innocence" element for an equitable easement.

The court must vacate or modify a judgment that exceeds pleadings and verdict or imposes

relief not supported by claims tried. These provisions should be stricken.

Defendants request the Court grant within motion based on the good cause demonstrated herein, consistent with the [Proposed] Order hereon, and grant such other and further relief as Court deems just and proper.

Supported by the Declaration of

Diana Sandoval; filed 4/13/26; re: Motion Not Withstanding the Verdict:

Stephen M Sanders; filed 4/13/26; re: Motion Not Withstanding the Verdict

Diana Sandoval; filed 4/13/26; re: Motion for Judgment Not Withstanding the Verdict:

Stephen M Sanders; filed 4/13/26; re: Motion for Judgment Not Withstanding the Verdict

Stephen M Sanders; filed 4/13/26; re: Motion to Vacate, Modify Judgment and New Trial

Tyler Quiel filed 4/13/26; re: Motion to Vacate, Modify Judgment and New Trial

Defendants' Motion for an order to

(1) vacate the void judgment as to unpled, unserved Trust and Trustee capacities under California Code of Civil Procedure ("CCP") § 473(d);

(2) vacate or, in the alternative modify the judgment under CCP 663, and

(3) for new trial under CCP § 657.

Filed 4/13/26; 22 pages; summarized: Defendants to preserve their jurisdiction and other objections on behalf of said trust and appellate rights and the Court's ruling thereon and without waiving any legal rights or remedies (hereafter sometimes referred to collectively as "Defendants" or "trustees") moved this Court for an order to (1) vacate the void judgment as to unpled, unserved Trust and Trustee capacities under California Code of Civil Procedure ("CCP") § 473(d); vacate or, in the alternative modify the judgment under CCP 663, and (3) for new trial under CCP § 657. This motion seeks correction of three fundamental structural defects in the judgment entered on March 18, 2026:

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Here, those variance provisions cannot confer personal jurisdiction or substitute for proper

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Second, during trial, Plaintiff expert Eva Turenchalk coordinated with Santa Barbara County Planning & Development Department's Senior Planner William Brown to alter Defendants' Accessory Dwelling Unit plans applied for under 3200 Serena Avenue, Carpinteria CA 93013 address ("3200 Serena") by striking the 3200

Serena and replacing it with "3196" for next-day impeachment before Defendants ever received the plans; Fire Marshal Michael LoMonaco then falsely testified, during improper rebuttal, that he personally made these changes, and post-trial Public Records Act requests revealed spoliation of key Turenchalk-Brown communications. Together, these acts constitute fraud on the court, trial by ambush, and deliberate manipulation and fabrication of evidence, warranting vacatur or modification of the Judgment under Code of Civil Procedure section 663 because the decision is not supported by the true facts, and, at minimum, a new trial under section 657.

Third, systematic irregularities cumulatively deprived Defendants of a fair trial: a mandatory reading burden applied to Defendants' exhibits but waived for Plaintiff; third-party hearsay admitted to show Plaintiff's thread while Sandoval's identical state-of-mind testimony was struck; Defendant's sole witness (David Tetzlaff) tightly restricted while Plaintiff's witnesses were largely unrestricted, including undisclosed expert Fire Marshal LoMonaco, PPP's own client; and, after initially denying equitable easement relief, the Court later granted an unpled equitable easement. Combined with selective motion-in-limine enforcement, systematic striking of Diana's testimony, questions surrounding the Court's reference to a property view, and jury selection concerns, these constitute irregularities requiring a new trial under CCP § 657.

The Judgment also exceeds both the pleadings and the verdict by imposing mandatory and

prohibitory injunctions on unpled and untried theories and forms of relief, including compelling Defendants to sign an Owner/Applicant Consent Form and "any other documents" requested by the County, requiring perpetual and immediate maintenance of the alleged easement area, forcing relinquishment of a lawful mailbox, and granting an unpled equitable easement after denying that relief during trial and despite Plaintiff's inability to satisfy the "innocence" element—particularly in light of Plaintiff's own survey acknowledging that the bridge extends outside the disputed easement area. These vague and

untried injunction terms, never pleaded, tried, or proven, warrant vacatur under CCP § 663.

Defendants Request for Judicial Notice

Filed 4/13/26; in support of Defendants' Motion to Vacate or Modify Judgment and for New Trial

#1 through #62.

Ruling: Granted

Defendants Compendium of Exhibits

Filed 4/13/26; not summarized but acknowledged.

Defendants' Request for Judicial Notice

Filed 4/16/26; requests that this Court take judicial notice of the following matters, facts and documents:

1. A true and correct copy of the Prescriptive Easement Area is incorporated herein as Exhibit A.
2. A true and correct excerpt of the Reporter's Transcript of Proceedings on Friday, January 23, 2026, as to trial testimony about bridge use is incorporated herein as Exhibit B.
3. A true and correct excerpt of the 01/23/2026 Court Filed Jury Instructions Given – Post-Evidence incorporated herein as Exhibit C.
4. A true and correct excerpt of the Notice of Entry of the 02/09/2026 Court Filed Final Statement of Decision is incorporated herein as Exhibit D.
5. A true and correct excerpt of the Reporter's Transcript of Proceedings on Thursday, January 22, 2026, as to trial testimony about the bridge being outside the easement is incorporated herein as Exhibit E.
6. A true and correct copy of the sonar survey identified as Trial Exhibit 25, is incorporated herein as Exhibit F.
7. A true and correct copy of correspondence from Defendants to Plaintiff regarding use of the easement and bridge, identified as Plaintiff's Exhibit 337, is incorporated herein as Exhibit G.
8. A true and correct excerpt of the Reporter's Transcript of Proceedings on Monday, January 12, 2026, as to trial testimony regarding access via the Serena bridge, is incorporated herein as Exhibit H.

9. A true and correct copy of Trial Exhibits 21, 22 and Plaintiff's Exhibit 322, photograph the bridge with a large hole in the deck, yellow caution tape, a chain, and a two-by-four across the span, is incorporated herein as Exhibit I.

10. A true and correct copy of the 2019 email from Eva Turenchalk to attorney David Tetzlaff, as to the applicable County approvals from Foothill Road, with no reference to Serena, is attached herein as Exhibit J.

11. A true and correct excerpt of the Reporter's Transcript of Proceedings on Thursday, January 15, 2026, as to trial testimony regarding the hole in the bridge, is incorporated herein as Exhibit K.

12. A true and correct excerpt of the Reporter's Transcript of Proceedings on Thursday, January 15, 2026, as to trial testimony regarding non-usage of the bridge, is incorporated herein as Exhibit L.

13. A true and correct excerpt of the Reporter's Transcript of Proceedings on Friday, January 23, 2026, as to Plaintiff's closing statement is incorporated herein as Exhibit M.

14. A true and correct excerpt of the 01/23/2026 Court Filed Jury Instructions Given – Post-Evidence incorporated herein as Exhibit N.

15. A true and correct copy of the sonar survey identified as Trial Exhibit 25, is incorporated herein as Exhibit O.

16. A true and correct excerpt of the Reporter's Transcript of Proceedings on Monday, January 12, 2026, as to trial testimony regarding access via the Serena bridge, is incorporated herein as Exhibit P.

Ruling: Granted.

Plaintiff's Opposition to

Defendants' Motion for Judgment Notwithstanding the Verdict

Filed 4/23/26; 16 pages; summarized: Defendants are understandably unhappy about the jury's verdict and the Judgment entered against them, but they have no grounds to have it set aside and replaced by a judgment in their favor. Trial in this case established that Plaintiff has an expressly recorded and unabandoned easement for roadway purposes over Defendants' real property ("Serena Property"). A bridge is partially located on the Easement area ("Bridge") and connects Plaintiff's real property ("PoloDonkey Property") with the adjoining Serena Property. Defendants maintain and refuse to remove from the Serena Property an illegal bamboo fence ("Bamboo Fence"), which is located next to the Bridge, stretches the entire width of the Easement area, and obstructs access to and from the PoloDonkey Property and Plaintiff's employee dwelling ("Cottage") located next to the Bridge. Defendants now take issue with the part of the jury's verdict awarding Plaintiff a prescriptive easement over a portion of the Bridge that extends beyond the boundaries of the Easement roadway ("Prescriptive Easement"). Defendants claim that no evidence was presented at trial proving open, continuous and hostile use of that corner of the Bridge for the prescriptive period of five years. Defendants also claim that if a Prescriptive Easement was ever created, it was subsequently extinguished by non-use for at least five years, or through abandonment of the Bridge and Easement roadway. Defendants' arguments are unavailing and unsupported by the trial record. Over the course of a 3-week jury trial, substantial evidence was presented indicating that Plaintiff and its predecessors-in-interest used the Bridge for roadway purposes openly, continuously and without permission since at least 2004. The Prescriptive Easement area is an integral part of the Bridge and its supporting structure – without it, the Bridge would collapse. Therefore, every single time anyone used the Bridge, they also used the Prescriptive Easement, and the jury inevitably made this very reasonable and common-sense inference in their verdict. To boot, trial testimony confirmed regular usage for roadway purposes of the

specific Bridge segment containing Plaintiff's Prescriptive Easement. While Defendants failed to meet their evidentiary burden of showing non-use of the Bridge for at least five (5) years or intent to abandon the Easement driveway, substantial evidence supports the jury's verdict and therefore Defendants' Motion should be denied in its entirety. The Court's Jury Instructions pertaining to Plaintiff's Prescriptive Easement claim (CACI 4901/4916) required Plaintiff to prove that: for a period of at least five years, Plaintiff or its predecessors-in-interest: (1) used Defendants' Serena Property for the purpose of a private road; (2) the use was continuous and uninterrupted; (3) the use was open and easily observable, or under circumstances that would give reasonable notice to Defendants or their predecessors-in-interest; and (4) the use was without permission from Defendants or their predecessors-in-interest; and further explaining in paragraph 5 that continuous and uninterrupted use need not be on every day during the 5-year prescriptive period and is sufficient if it occurs only on those occasions when it is necessary for the convenience of the user. The jury was also instructed that a prescriptive easement is abandoned if it is not used for any of the purposes for which it was acquired by the owner of the prescriptive easement for a 5-year period prior to September 23, 2024 – the date of commencement of this litigation.

Substantial evidence was presented at trial, establishing that both the Bridge and the

Prescriptive Easement area was used for roadway purposes.

Christopher Price testified at trial that he resided at the Cottage from "summer, fall of 2004" until "early winter of 2009, January-ish," and during that period of time, Mr. Price consistently used the Bridge and the Easement driveway on a daily basis "in a car, on a bicycle [or] walking" because "[t]hat was the only access to [the] [C]ottage."

In addition, when Mr. Price was asked "What part of the [B]ridge did you use when you were driving your car across it?", he responded: "The entire thing. It is not very wide. Only one car could pass at a time." Mr. Price also testified that even after he had moved out of the Cottage, he continued to use the Bridge and the Easement area to access the Cottage in his capacity as an agent and representative of the PoloDonkey Property's then-owner, Michael Rothbard, all the way until at least 2011.

James Rickard, III testified at trial that he was the manager of the PoloDonkey Property under its prior owner, Mr. Rothbard, and resided on the PoloDonkey Property between 2010 and 2014. During that time period, Mr. Rickard personally used the Bridge and the Easement area as one of the access points to the PoloDonkey Property. Mr. Rickard testified that he periodically drove or walked over the Bridge to visit friends and a business partner in the Serena neighborhood or to walk his dog, Bowie.

After Plaintiff acquired the PoloDonkey Property in 2014, Mr. Rickard moved out but

continued to regularly serve as a property manager for Plaintiff during and between rental events held on the PoloDonkey Property.

In January and April 2015, Mr. Rickard organized two meetings on the PoloDonkey Property with neighbors from the Serena neighborhood. Mr. Rickard invited the neighbors to cross over the Bridge into the PoloDonkey Property and arranged for an elderly neighbor to be picked up in a golf cart and brought to the second meeting over the Bridge.

In 2017, Mr. Rickard personally walked across the Bridge to respond to a fire emergency at a neighbor's house. Also in 2017, Mr. Rickard used the Bridge and the Easement area to access the PoloDonkey Property's water meters at Serena Avenue.

In January 2018, after the unfortunate Montecito mudslides on the heels of the Thomas Fire, the Bridge became the only access point for the entire PoloDonkey Property, and Mr. Rickard personally walked across the Bridge and authorized the evacuation of rental equipment from the PoloDonkey Property with pickup trucks over the Bridge.

In the summer of 2019, Mr. Rickard walked across the Bridge to meet with a neighbor and offered to relocate her for the duration of a wedding to be held on the PoloDonkey Property.

Plaintiff purchased the PoloDonkey Property in 2014. In 2019, Plaintiff's principal, Robert

Seidler, was deposed in a lawsuit stemming from an injury sustained on the Bridge by a neighbor, Ron MacLeod ("MacLeod Lawsuit"). During that deposition (and during trial in this case), Mr. Seidler confirmed that since acquiring the PoloDonkey Property in 2014, he walked across the Bridge "a handful" of times for a walk or to visit neighbors, and to inspect the Bridge after Mr. MacLeod's accident.

Donna Hamel, the former owner of Defendants' Serena Property, installed the Bamboo

Fence next to the Bridge in "early 2020."

Mr. Seidler testified at trial that he met with Ms. Hamel in person at least three times to discuss repairs to the Bridge and Mr. Seidler always walked across the Bridge to attend those meetings. In October 2020, Mr. Seidler had the old wooden planks of the Bridge deck removed, which stripped the Bridge down to concrete abutments and connecting steel beams. That was the condition of the Bridge at the time Defendants purchased the Serena Property in February 2021. Mr. Seidler resumed his Bridge repairs in June 2022 by first weather-treating the steel beams and then installing new wooden floor planks and railings.

Even during the brief period of time between October 2020 and June 2022, when no work was done on the Bridge and it was stripped down to concrete abutments and steel beams, Mr. Seidler continued to use the Bridge and the Easement area for bike rides and to attend his meetings with Defendants on the Serena Property. Mr. Seidler testified that on two occasions he crossed over the Bridge by "beam walking" on top of the far-right steel beam shown on Trial Ex. 326.

In June 2024, after the County of Santa Barbara had formally approved his Bridge repairs, Mr. Seidler took down Defendants' Bamboo Fence and went on a long-awaited and well-documented bike ride across the Bridge.

Contrary to Defendants' assertions in the Motion, trial evidence showed that the repaired Bridge has the same location, size and shape as the old Bridge prior to Mr. Seidler's repairs, and thus the location and size of the Prescriptive Easement area outlined in red on Trial Ex. 365 are the same they have always been.

Mr. Seidler also testified at trial that when he walked across the Bridge, he "walked all over the [B]ridge" and "used all parts of the [B]ridge equally."

Based on the testimony outlined above, there is substantial evidence proving that Plaintiff

and its predecessors-in-interest used the Bridge and the Easement area openly and continuously for roadway purposes during the period between 2004 and 2024. The use of the Bridge was sometimes daily and sometimes occasional, as necessary for access to and from the PoloDonkey Property, and there was never a prolonged period of non-use, let alone non-use of the Bridge for five or more years.

Defendants argue throughout the Motion that use of the Bridge does not establish use of the Prescriptive Easement area outlined in red on Trial Ex. 365. That is the only logical and reasonable inference the jury could make based on the evidence outlined above. The Prescriptive Easement area is an integral and inseparable part of the Bridge, which includes some of the Bridge's structural and supporting elements – without it, the Bridge would collapse. As depicted on Trial Ex. 365, the Prescriptive Easement area encompasses parts of the Bridge deck and one of the Bridge abutments, as well as part of the

far-right steel beam depicted on Trial Ex. 326. Mr. Seidler testified at trial that if someone cut out the Prescriptive Easement portion of the Bridge, "it would put the whole integrity of the [B]ridge in question" by removing crucial parts of the Bridge's support system. Accordingly, the Prescriptive Easement area was used every single time the Bridge was used – this is the only reasonable inference and common-sense conclusion that can be reached based on the evidence presented at trial.

Furthermore, contrary to Defendants' insistence in the Motion, substantial evidence was

presented at trial proving usage of the particular Prescriptive Easement area outlined in red on Trial Ex. 365. Mr. Price testified that he drove his car over the "entire" Bridge, while Mr. Seidler testified that whenever he walked across the Bridge, he "walked all over the [B]ridge" and "used all parts of the [B]ridge equally," which necessarily included the Prescriptive Easement area.

During the brief period of time between October 2020 and June 2022 when the Bridge was stripped down to abutments and beams, Mr. Seidler used the Prescriptive Easement area when he crossed over the Bridge by walking along the far-right steel beam depicted on Trial Ex. 326, a portion of which is located squarely within the Prescriptive Easement area. Finally, evidence was presented at trial proving that during the period between 2020 and 2024, Mr. Seidler repaired the Bridge by removing the old wooden deck planks, weather-treating the steel beams, and installing new deck planks and railings. A portion of these repairs was necessarily performed within the Prescriptive Easement area outlined in red on Trial Ex. 365, as Mr. Seidler's workers had to walk and work in that particular area, which counts as use for roadway access and maintenance purposes. All these reasonable inferences were made by the jurors in this case when they concluded that both the Bridge and the Prescriptive Easement area were used openly and continuously for road purposes between 2004 and 2024 without any interruptions of non-use for five or more years.

Defendants argue in the Motion that "the evidence confirms a permissive arrangement, which is legally insufficient to satisfy the hostile element of CACI 4901." This argument is supported only by Trial Ex. 337 – a letter from Defendants to Plaintiff, dated June 24, 2022, in which Defendants stated that Plaintiff was "welcome to use [its] [E]asement and the [B]ridge on which it is located." Even if, *arguendo* only, Defendants' June 24, 2022, letter constitutes a permission to use the Bridge, by the time that letter or any other "permissive" communication was generated by Defendants after their purchase of the Serena Property in 2021, the 5-year prescriptive use period had accrued many times over with respect to the Prescriptive Easement area. Plaintiff alleged in its Complaint that "Plaintiff and Plaintiff's predecessors-in-interest did not have Defendants' and Defendants' predecessors-in-interest's permission to use the Prescriptive Easement Area."

The trial testimony of Mr. Price provided substantial evidentiary support for this allegation. Mr. Price testified that he "never asked anybody for permission to use the [Easement] driveway" over the Bridge. In other words, for more than five years between 2004 and 2011, Mr. Price used the Bridge, including its integral Prescriptive Easement area, for roadway purposes, openly and continuously, and without anyone's permission. This substantial evidence proves that Plaintiff's Prescriptive Easement was created long before Defendants moved into the Serena neighborhood in 2021 and long before Defendants' 2022 sham "permission" to use the Bridge. Defendants failed to meet their burden of proving permissive use of the Bridge and the Prescriptive Easement area within it, and thus substantial evidence presented at trial supported the jury's conclusion in the verdict that Plaintiff had proven all elements of the Court's Prescriptive Easement Jury Instructions, CACI 4901/4916.

Defendants rely on Civil Code § 811(4) in arguing that Plaintiff's Prescriptive Easement was extinguished due to non-use for at least five years after Mr. MacLeod's accident on the Bridge in 2017. Defendants fail to meet their burden to prove non-use. As outlined in more detail above, the MacLeod incident did not render the Bridge "impassable," as Defendants claim in the Motion. Mr. Rickard, Plaintiff's property manager, testified at trial that in 2018, after the Montecito mudslides, he personally walked across the Bridge and authorized the evacuation of rental equipment from the PoloDonkey Property with pickup trucks over the Bridge.

In the summer of 2019, Mr. Rickard again personally walked across the Bridge to meet with a neighbor and offered to relocate her for the duration of a wedding to be held on the PoloDonkey Property. Subsequently, after Ms. Hamel installed the Bamboo Fence next to the Bridge, Mr. Seidler continued using the Bridge to access the Serena Property for his meetings with Ms. Ha. Even between October 2020 and June 2022, when no work was done on the Bridge and it was stripped down to concrete abutments and steel beams, Mr. Seidler continued to use the Bridge for bike rides and to attend his meetings with

Defendants on the Serena Property. Mr. Seidler testified that on two occasions he crossed over the Bridge by “beam walking” on top of the far-right steel beam shown on Trial Ex. 326 – the same steel beam that runs under and supports the Prescriptive Easement corner of the Bridge. The Court should accept all of this evidence as true and substantially supportive of the jury’s reasonable conclusion that use of the Bridge for roadway purposes did not cease after the 2017 MacLeod accident, and by extension, the Prescriptive Easement area, which is part and parcel of the Bridge, remained in use and was not extinguished pursuant to Cal. Civ. Code § 811(4).

Defendants also argue that Plaintiff abandoned its Prescriptive Easement pursuant to the

more stringent common law abandonment standard applicable only to easements created by a recorded grant. Defendants fail yet again to meet their heavy burden to prove “(1) the cessation of use of the easement by the owner of the dominant tenement; and (2) unequivocal and decisive acts on the part of the dominant tenant, clearly showing an intention to abandon.” *Visitacion Inv., LLC v. 424 Jessie Historic Props., LLC*, 92 Cal. App. 5th 1081, 1090 (2023).

In addition to their failing non-use arguments discussed above, Defendants attempt again to prove abandonment intent by misrepresenting Mr. Seidler’s 2019 deposition testimony in the MacLeod Lawsuit, when he stated merely that he would not drive across the Bridge at that time because access to the Bridge was restricted following Mr. MacLeod’s accident. Mr. Seidler never stated during the MacLeod Lawsuit that access to the Bridge was permanently eliminated or that he had no intention of using the Bridge ever again in the future. In fact, Mr. Seidler was never asked during his 2019 deposition whether he intended to use the Bridge or the Easement in the future, and thus his testimony pertained only to the status of the PoloDonkey Property’s access points solely at the time of the 2019 deposition.

Defendants also refuse to let go of a 2019 email sent by Plaintiff’s land-use consultant, Eva

Turenchalk, to opposing counsel, David Tetzlaff, in the MacLeod Lawsuit (“Tetzlaff Email”). The Tetzlaff Email, contained in Trial Ex. 51, purports to include as attachments land-use approval documents from the County indicating that “access would be from Foothill Road, with no reference to Serena.” Ms. Turenchalk’s trial testimony clearly confirmed that there is no context available for the Tetzlaff Email, such as an email from Mr. Tetzlaff to which Ms. Turenchalk was responding, and Ms. Turenchalk did not recall

the type of “access” she referenced in the Tetzlaff Email. Subsequently, the Court properly used its discretion and did not allow Mr. Tetzlaff to speculate as to whether Ms. Turenchalk was indicating intent to abandon the Bridge as a general access point to the PoloDonkey Property or she was simply confirming in the Tetzlaff Email that emergency access to the PoloDonkey Property was to be provided not over the Bridge but through an alternative access point on Foothill Road.

Accordingly, there is no evidence of Plaintiff’s intent to abandon the use of the Easement

area and the Bridge and, by extension, the use of the Prescriptive Easement. To the contrary, substantial evidence was presented at trial of Plaintiff’s and its predecessors-in-interest’s open and continuous use of the Bridge for roadway purposes since at least 2004. Substantial evidence was also presented at trial of Plaintiff’s “unequivocal and decisive acts” showing intent not to abandon the Bridge, but to repair and continue using it along with its integral part – Plaintiff’s Prescriptive Easement.

For all the foregoing reasons, no good cause exists to vacate the Judgment and enter

judgment notwithstanding the verdict in favor of Defendants, and Plaintiff respectfully urges this Court to deny the Motion in its entirety.

Defendants Reply re: Motion for Judgment Notwithstanding the Verdict

Filed 5/1/25; 10 pages; summarized: Plaintiff opens the door, by its own description of the Prescriptive Easement Area, to a threshold legal bar that requires a Judgment Notwithstanding the Verdict ("JNOV") before the Court reaches any substantial-evidence question. Four independent grounds, each supported by Plaintiff's own concessions and this Court's own findings, separately require JNOV. Plaintiff's Opposition now reverses course and resurrects the very theory the Court rejected: that the Prescriptive Easement Area "encompasses parts of the Bridge deck and one of the Bridge abutments," that those structures are "an integral and inseparable part of the Bridge" without which "the Bridge would collapse," and that they were therefore "used every single time the Bridge was used." That theory is foreclosed three times over. First, Plaintiff is judicially estopped from rebranding as "prescriptive" the same structural-footprint theory it told the Court at trial required equitable-easement amendment. (*Jackson v. County of Los Angeles* (1997) 60 Cal.App.4th 171, 181.) Second, even if the theory were properly before this Court, the holding by the Court of Appeals in *Wang v. Peletta* 112 Cal.App.5th 478, 487-491, forecloses any prescriptive right in unpermitted, nuisance-per-se structures sitting in Garrapata Creek—as Plaintiff's own admissions and this Court's Statement of Decision establish these are. Third, the trial record contains no evidence of roadway use of the TE 365 Red Outline; counsel's closing-argument admission forecloses Element 3 of CACI 4901; and Plaintiff's own evidence establishes non-use within the CACI 4916 window. Each ground independently requires JNOV.

On January 19, 2026, Plaintiff filed a Motion to Amend the Complaint to Conform to Proof

Regarding Equitable Easement ("Equitable Easement Motion" or "EEM"). The motion conceded what Plaintiff now disputes. Plaintiff asked the Court to deem the pleadings amended to encompass Plaintiff's "right to maintain and preserve the existing access [B]ridge within its full structural footprint based on the Court's inherent equitable powers and balancing-of-hardships," and to address "evidence concerning the structural failure of the [B]ridge if narrowed, cut, or partially removed." Plaintiff further conceded that "[a] ruling confined to a narrow surveyed strip, without addressing structural necessity and equitable footprint of the bridge, would leave the bridge legally unmaintainable, unsafe, and ineligible for permitting." Plaintiff thus told this Court, in writing, that the prescriptive cause of action could not reach the abutments and structural footprint, and that an equitable-easement amendment was necessary to do so.

The Court denied Plaintiff's motion to amend and ruled it would adhere to the pleadings as

filed. The equitable-easement theory was therefore not before the jury, and the only theory

submitted on the Sixth Cause of Action was prescriptive easement, limited to the Trial Exhibit 365 Red Outline.

Confronted with this Motion's demonstration that no witness testified to the use of the Red in TE 365 Outline as a private road, Plaintiff's Opposition now advances, the theory the Court rejected. The Opposition argues that the TE 365 Red Outline "encompasses parts of the Bridge deck and one of the Bridge abutments," that those structures are "an integral and inseparable part of the Bridge" without which "the Bridge would collapse," and that they were therefore "used every single time the Bridge was used." That is the structural-footprint theory verbatim from the denied motion to amend. Compare Plaintiff's Equitable Easement Motion ("removal or narrowing of portions of the bridge would compromise the structural integrity of the entire structure"), with Opp. 11:18–20 ("[I]f someone cut out the Prescriptive Easement portion of the Bridge, 'it would put the whole integrity of the [B]ridge in question.'"). The Opposition simply relabels the rejected theory as prescriptive.

Judicial estoppel "precludes a party from gaining an advantage by taking one position and then seeking a second advantage by taking an incompatible position." (*Jackson supra* 60 Cal.App.4th at 181.) The doctrine applies where (1) the same party has taken two positions, (2) the positions were taken in judicial proceedings, (3) the party was successful in asserting the first position, (4) the two positions are totally inconsistent, and (5) the first position was not taken as a result of ignorance, fraud, or mistake. All five elements are satisfied. Plaintiff took the position at trial that prescriptive easement does not reach the abutments. Plaintiff was "successful" in that position in the sense relevant to estoppel: the Court accepted Plaintiff's framing and adhered to the pleadings, and Plaintiff cannot now disavow the framing it itself supplied. (*MW Erectors, Inc. v. Niederhauser Ornamental & Metal Works Co.* (2005) 36 Cal.4th 412, 422 [success element satisfied where prior court adopted the position].) The Opposition's contrary position, that prescriptive easement does cover the abutments because they are "integral" to the bridge, is inconsistent with the position Plaintiff took on January 19, 2026. And nothing suggests ignorance or mistake: the motion to amend was a deliberate, counseled filing.

Independently, black letter pleading doctrine forecloses recovery on an unpleaded theory. “A judgment is void if it grants relief on a theory that the plaintiff did not plead and that was not tried by consent.” (Crawford v. Weather Shield Mfg., Inc. (2008) 44 Cal.4th 541, 553.) Plaintiff conceded the theory was unpleaded; the Court denied amendment; the verdict cannot be sustained on the rejected theory. The Opposition’s structural-integrity argument is procedurally foreclosed before it reaches its substantive defects.

Even if the structural-integrity theory were properly before the Court, Wang *supra* 112

Cal.App.5th at 487, 488, forecloses any prescriptive right in the abutments and decking. Plaintiff has affirmatively placed every Wang predicate in the JNOV record by attaching trial testimony to its Opposition. Sandoval testified at trial: “I’m not too sure how to answer that because there’s no CDP, so I’m not too sure of the, quote, repairs were done.” Seidler testified: “The biggest question with Eva that I had was whether this falls under repair and maintenance or whether it needs permits.”

Plaintiff’s own Equitable Easement Motion likewise conceded—in writing—that “the bridge still requires a CDP, and ... the application for a CDP is temporarily in limbo” (Equitable Easement Motion at 1 In 11-12.) And this Court so found in its Statement of Decision: “the Bridge needs a CDP to be permitted for use.” (Statement of Decision at 11.)

Santa Barbara County’s certified Local Coastal Program (“LCP”) declares any structure

“constructed [or] maintained” contrary to the LCP “unlawful and a public nuisance.” (Santa Barbara County Coastal Zoning Ordinance § 35-185.4(1)(a).) The LCP carries the force of state law in the coastal zone. (Pacific Palisades Bowl Mobile Estates, LLC v. City of Los Angeles (2012) 55 Cal.4th 783, 793–795.) The unpermitted abutments and decking sitting in Garrapata Creek are, by force of that declaration, a public nuisance *per se*. The meaning and application of CZO § 35-185.4(1)(a) is a legal question this Court should decide under its independent judgment, with no deference owed to any contrary agency interpretation. (e.g. reasoning only, Shear Development Co., LLC v. California Coastal Commission S284378, slip opn. at pp. 2, 12–13.)² The ordinance’s plain text resolves the question, and this Court should hold as a matter of law that the unpermitted bridge is a public nuisance *per se*.

“No lapse of time can legalize a public nuisance, and a prescriptive right cannot be maintained against a public nuisance.” (Wang, 112 Cal.App.5th at 487) Wang is materially indistinguishable. The Wang plaintiffs built a 295-foot retaining wall without permits and then claimed a prescriptive easement based on decades of open use. (Wang, *supra* at 482–483.) The Court of Appeal affirmed, “as a matter of law,” that no prescriptive easement could arise because the unpermitted structure was “a public nuisance *per se*” under the local code’s nuisance declaration and abatable. The court rejected, in terms that defeat the only theory Plaintiff offers here, the argument that a solid structure should be treated as permanent rather than continuing: “The fact that a nuisance can be ordered abated itself implies that ‘the nuisance was abatable and therefore of a continuing nature.’” And the court rejected public-interest framing as no answer to the categorical bar.

The same result follows here, with greater force. Plaintiff’s own theory, that the abutment and supporting beam in the Creek are “an integral and inseparable part of the Bridge” without which “the Bridge would collapse”, establishes that every alleged use of the Bridge depended on unpermitted, nuisance-*per-se* structures. A prescriptive right cannot ripen on that footing. The Opposition does not engage Wang, does not address the unpermitted status, and identifies no authority allowing a prescriptive easement to attach to a public nuisance subject to abatement.

Plaintiff’s Trial Witness Christopher Price’s (“Price”) testimony that he drove “[t]he entire

thing” does not supply geographic specificity. Price was shown Exhibits 314, 320, and 321—not TE 365—and “the entire thing” was his characterization of the structure he perceived in 2004–2009, not a description of a surveyed wedge unknown to him. The bridge whose “entire” footprint Price drove is also not the bridge depicted in TE 365: Plaintiff concedes the bridge was stripped to abutments from October 2020 to June 2022 and rebuilt with decking that extended outward beyond the original footprint. CACI 4901 was limited to use for the purpose of a private road, since prescriptive rights are limited only to

the uses which were made of the easement during the prescriptive period. (McLear-Gary v. Scott, 25 Cal. App. 5th 145, 160-161).

Counsel's closing statement, "[n]either my client nor the Defendants knew that the bridge was outside the easement ... until mid-2024" concedes that Defendants had no actual knowledge of the off-easement encroachment during the prescriptive period. Constructive notice cannot rescue Element 3: the doctrine arises only where the use "clearly displays" a claim of right, and the TE 365 Red Outline is a narrow wedge invisible to the eye and undetectable without sonar. A use indistinguishable on its face from use of the recorded right gives the purported servient owner notice of nothing.

Plaintiff's argument that the Red Outline "was used every single time the Bridge was used"

silently rewrites CACI 4901, replacing CACI 4901's language of "for the purpose of a private road" with proof of structural load. The theory also self-destructs on Plaintiff's own concession: during the twenty months the Bridge was stripped to bare beams (October 2020–June 2022), there was no structure for the off-easement strip to integrally support. The structural inference further requires the jury to layer at least four inferences without direct testimonial support: (1) people drove on the bridge generally; (2) some travel extended into the narrow Red Outline; (3) Defendants somehow perceived that off-easement encroachment; and (4) Defendants understood it as a hostile claim. No witness testified to (2) through (4), however.

Plaintiff asks this Court to convert load-bearing structural support of the Bridge into Plaintiff's prescriptive property. That is not an easement; it would be a fee interest dispossession, essentially a conversion or taking of property through exclusivity of use by others. California uniformly rejects prescriptive claims that deprive the purported servient owner of meaningful use of the encumbered land. If the Red Outline is so integral that "the Bridge would collapse" without it, the prescriptive easement permanently denies Defendants any use of the strip, precisely the result the Court of Appeal condemned.

California Civil Code Section 811(4) extinguishes a prescriptive easement by non-use for the prescriptive period—without proof of intent to abandon – "When the servitude was acquired by enjoyment, by disuse thereof by the owner of the servitude for the period prescribed for acquiring title by enjoyment." CACI 4916 instructed the jury that abandonment turns on use "for a five-year period prior to September 23, 2024." The Opposition conflates California Civil Code § 811(4) with the more demanding common-law standard from *Visitacion Inv., LLC v. 424 Jessie Historic Props., LLC* and applies *Visitacion* to both grounds. That is wrong and would be an error -- non-use suffices applying § 811(4). Plaintiff's own evidence establishes such non-use. The Bridge was stripped to bare abutments and steel beams from October 2020 to June 2022—a bridge is not roadway use.

From 2017 forward, depict a holed deck, caution tape, chain, two-by-four, and "POSTED NO TRESPASSING" signs; predecessor servient owner Donna Hamel testified she "never observed anyone using the bridge at all." Since 2017 Seidler has never driven a car across the Bridge, using only Foothill Road. Even under *Visitacion*'s more stringent standard, Seidler's 2019 deposition testimony, read to the jury and attached as an exhibit to Plaintiff's own Opposition, that he "did not own the bridge" is the unequivocal and decisive abandonment act: one cannot maintain prescriptive rights to property one disclaims owning. Combined with nine years of fencing, posted signs, holed deck, Foothill rerouting, and Plaintiff's land-use consultant's 2019 representation that "access would be from Foothill Road, with no reference to Serena", the conduct *Visitacion* requires is in the record. The split on the standard of proof, (clear and convincing) versus (preponderance) identified in the Motion. Grant was decided by the Second District, Division Six, the division to which any appeal will be taken, and reflects the standard consistently applied in this Division. The Opposition does not address the split, waiving any challenge. Under Grant, every element of CACI 4901 as to the TE 365 Red Outline must be proven by evidence "sufficiently strong to command the unhesitating assent of every reasonable mind." Inference from generalized bridge testimony to roadway use of a surveyed wedge no party knew existed cannot meet that standard.

Plaintiff is judicially estopped from rebranding as prescriptive the structural-footprint theory the Court rejected when it denied amendment. *Wang v. Peletta*, supported by Plaintiff's own admissions in its motion to amend and at trial, forecloses any prescriptive right in unpermitted, nuisance-per-se structures. The trial record contains no substantial evidence tying use to the TE 365 Red Outline, and Plaintiff's own concessions establish non-use within the CACI 4916 window. The Motion should be granted, and judgment notwithstanding the verdict entered in favor of Defendants.

Evidentiary Objections to Declaration of Jeff Tchakarov

#1 --- ¶6 to the Declaration of Jeff F. Tchakarov, alleging a true and correct copy of "Plaintiff's Trial Exhibit 326 admitted into evidence during the 3-week jury trial held in the above-captioned action between January 5 and January 23, 2026." –

Objections: (1) Inadmissible Hearsay

without applicable exception. (2) Irrelevant (Ev. Co §403). (3) Lacks Foundation. (4) Lacks personal knowledge. (5) Best evidence rule. Prejudicial. Statement is conclusionary and materially misleading.

Ruling: Overruled

Defendants evidentiary objections to the evidence proffered by Plaintiff within the following portions of the declarations of Eva Turenchalk, submitted in support of the opposition to Defendants' Motion To (1) Vacate Void Judgment As To Unpleaded, Unserved Trust And Trustee Capacities Under CCP § 473(D); (2) Vacate Or, In The Alternative, Modify The Judgment Under CCP § 663; And (3) For New Trial Under CCP § 657.

#1. ¶12 to the Declaration of Eva Turenchalk states in part: On August 21, 2025, Plaintiff's

counsel, Price, Postel & Parma LLP ("PPP") sent a letter to Santa Barbara County ("County") . .

Ruling: Overruled

#2. ¶12 to the Declaration of Eva Turenchalk states in part: PPP's letter requested that the bamboo fence on the ADU plans should be called out as "unpermitted" rather than "existing" to avoid any confusion . . .

Ruling: Overruled

#3. ¶13 to the Declaration of Eva Turenchalk states in part: On January 14, 2026, as part of my

preparation for trial testimony scheduled for January 16, 2026, I inquired with Ms. Brown regarding the status of Defendants' ADU application. . . .

Ruling: Overruled

#4. ¶14 to the Declaration of Eva Turenchalk states in part: On January 15, 2026, Ms. Brown

emailed me Defendants' ADU plans stamped approved on December 29, 2025.

Ruling: Overruled

#5. ¶14 to the Declaration of Eva Turenchalk states in part: True and correct copies of Ms. Brown's January 15, 2026 email and the enclosed ADU plans are collectively attached hereto as

Exhibit A. . . .

Ruling: Overruled

#6. ¶15 to the Declaration of Eva Turenchalk states in part: After I noticed that the County had not

corrected all references to 3200 Serena Avenue on the ADU plans as part of the County's December 29, 2025 approval, I emailed Ms. Brown . . .

Ruling: Overruled

#7. ¶16 to the Declaration of Eva Turenchalk states in part: On January 16, 2026, I confirmed with Ms. Brown that the approved ADU plans and the associated Coastal Development Permit had been emailed to the ADU applicant, Defendant Tyler Quiel.

Ruling: Overruled

Request for Judicial Notice

Filed by Plaintiff on 4/30/26; 83 pages; summarized: requests that the Court take judicial notice of the following documents

1. Defendants/Petitioners' Petition for Writ of Supersedeas or Other Extraordinary

Relief ("Supersedeas Petition"), seeking immediate stay of enforcement of the Judgment during pendency of appeal, filed in the Appellate Case on March 25, 2026. A true and correct copy of this document is attached hereto as Exhibit A.

2. Temporary Stay Order, staying enforcement of the Judgment pending briefing of the

Supersedeas Petition, entered by the Appellate Court in the Appellate Case on March 26, 2026. A true and correct copy of this document is attached hereto as Exhibit B.

3. Plaintiff/Respondent's Opposition to the Supersedeas Petition, filed in the Appellate

Case on April 10, 2026. A true and correct copy of this document is attached hereto as Exhibit C.

4. Defendants/Petitioners' Reply in Support of the Supersedeas Petition, filed in the Appellate Case on April 20, 2026. A true and correct copy of this document is attached hereto as Exhibit D.

Ruling: Granted.

Declaration of Jeff Tchakarov; 237 pages; filed 4/23/26; read and considered.

Declaration of Todd Amspoker; 4 pages; filed 4/23/26; read and considered.

Declaration of Eva Turenchalk; 7 pages; filed 4/23/26; read and considered.

Plaintiff's Opposition to Defendants Motion to

(1) Vacate Void Judgment as to Unpleaded, Unserved Trust and Trustee Capacities Under CCP § 473(d);

(2) Vacate or, In the Alternative, Modify the Judgment Under CCP § 663; and

(3) for New Trial Under CCP § 657 ("Motion")

Filed 4/23/26; 21 pages; summarized: Defendants stipulated on the trial record that they agreed to be bound both individually and as trustees in this action, and in his closing statement, Defendants' trial counsel jubilantly announced: "It's been a fair trial. This is Santa Barbara, California, and the United States, and it is a fair trial." In a stunning U-turn, Defendants now have the audacity to claim that they never authorized the stipulation and that the Court was unfairly biased against them. They even go as far as throwing their trial attorney "under the bus" by essentially accusing him of malpractice when he purportedly entered into the stipulation without their knowledge or permission, which is highly implausible and contrary to all principles of counsel's ostensible authority. In their desperation to achieve a new trial at any cost, Defendants have resorted to concocting conspiracy theories of evidence tampering and mid-trial collusion between Plaintiff's agents and public officials in connection with Plaintiff's 3200 Serena Avenue address. Defendants' diversion from the facts established at trial must fail. Ample witness testimony and documents were admitted into evidence proving that Plaintiff owns 3200 Serena Avenue, and thus the Court would have reached the same conclusion even without the evidence Defendants claim to be tainted. Defendants' allegations of trial irregularities are equally baseless and so untethered to reality as to include claims of a stealth property viewing by the Court in the absence of Defendants' counsel and even racial bias against Latino jurors because of Defendant Diana Sandoval's Latino heritage. Defendants should not be allowed to turn this Honorable Court into a circus. The Motion should be denied.

Defendants argue in the Motion that they never agreed to be bound in this action in their capacities as trustees of the Sandoval Quiel Revocable Living Trust dated July 15, 2022 ("Trust"), which is the legal owner of Defendants' real property and servient tenement at issue in this case located at 3196 Serena Avenue, Carpinteria, CA 93013 ("Serena Property"). On this basis, Defendants insist that the Court had no personal jurisdiction over the Trust and its trustees, and thus the Judgment is void as to the Trust and its trustees and should be set aside under CCP § 473(d).

Defendants' "smoke and mirrors" narrative runs contrary to what actually transpired during trial. On the morning of the second day of trial, January 6, 2026, Plaintiff's trial counsel approached Defendants' trial counsel, Joseph A. LeVota, off the record in the Court hallway to propose a stipulation between the parties, whereby the Complaint and all pleadings filed in this case would be deemed amended to name Defendants in both their individual capacities and their capacities as trustees of the Trust in order to correct an oversight in the Complaint naming Defendants only in their individual capacities despite the fact that the Serena Property is owned by the Trust. Plaintiff's counsel explained to Mr. LeVota that it was in Defendants' own best interest to agree to such a stipulation because if the jury reached a verdict in Defendants' favor as individuals only, they could not enforce any resulting judgment against Plaintiff as individuals who did not own the Serena Property. Mr. LeVota assured Plaintiff's counsel that he would discuss the proposed stipulation with his clients and would provide a response as soon as possible. During this entire conversation, Defendant Diana Sandoval was standing just a few feet away in the Court hallway.

On January 8, 2026, having received no response from Mr. LeVota, Plaintiff's counsel filed

a Motion to Amend the Complaint to Conform to Proof, or Deem the Pleadings Amended for Purposes of Judgment and Injunctive Relief ("Motion to Amend"). Request for Judicial Notice ("RJN"), Ex. A (Motion to Amend with POS). As its Proof of Service reflects, on January 7, 2026, the Motion to Amend was served on Defendants through both their trial counsel, Mr. LeVota, and their non-trial counsel, Mr. Stephen Sanders.

On January 8, 2026, during an off-record sidebar conference in the presence of Plaintiff's

counsel, Judge Thomas P. Anderle asked Mr. LeVota whether his clients were planning on opposing the Motion to Amend. Plaintiff's counsel informed Judge Anderle of counsel's prior discussion of a potential stipulation, and Mr. LeVota stated that Defendants would not be filing an opposition and would stipulate to the relief sought in the Motion to Amend. Judge Anderle suggested and counsel agreed to enter into the stipulation on the record in the morning of the following trial day. Defendant Diana Sandoval was present in the courtroom during this sidebar conference. On January 9, 2026, as the trial record reflects, Judge Anderle referenced the prior day's sidebar conference and Mr. LeVota's stipulation consent, and the parties, through their trial counsel, stipulated that the Complaint and all pleadings filed in this case were deemed amended to bind Defendants in both their individual and trustee capacities ("Stipulation"). After Plaintiff's counsel read the Stipulation into the record, Mr. LeVota stated: "No objection, your Honor." The Court then granted the Stipulation and asked for an order.

On February 23, 2026, the Court entered an Order Granting Plaintiff PoloDonkey, LLC's

Motion to Amend the Complaint to Conform to Proof or Deem the Pleadings Amended for Purposes of Judgment and Injunctive Relief ("Amend Order"). The Amend Order referenced the parties' January 9, 2026 on-record Stipulation and stated that: "Plaintiff's Complaint and all pleadings filed in the above-captioned action by both parties are hereby amended to conform to proof pursuant to Code of Civil Procedure sections 469 and 470 to include Defendants in both their individual capacity and their capacity as trustees of the Sandoval Quiel Revocable Living Trust dated July 15, 2022."

The Stipulation did not just happen "out of the blue," and thus it should not and could not

have come as a surprise to Defendants. By her own admission, Defendant Diana Sandoval was present in Court during every single day of trial, and she personally witnessed her trial counsel, Mr. LeVota, engage in the January 6, 2026, hallway conversation with Plaintiff's counsel, as well as in the January 8, 2026, sidebar conference between counsel and Judge Anderle, regarding the upcoming Stipulation. Defendants were also timely served with the Motion to Amend through their counsel.

Defendants were aware of all of these events, which transpired prior to the Stipulation's entry in the trial record. Do Defendants seriously expect anyone to believe that their attorneys kept them completely "in the dark" about the upcoming Stipulation?!? And where is Mr. LeVota's declaration in all of this??? Why has Mr. LeVota not filed a statement under penalty of perjury in support of the Motion, attesting to exactly what discussions he had with Defendants about the Stipulation and what authority he did or did not receive from them to act on their behalf? Defendants are clearly attempting a fraud on the Court by peddling the blatant lie that they were clueless of the upcoming Stipulation, in which their rogue trial counsel, Mr. LeVota, entered without their permission during the only five minutes of the 3-week trial Ms. Sandoval conveniently failed to attend. Defendants would surely not have taken such a preposterous litigation stance had the verdict gone their way... Even if, *arguendo* only, Mr. LeVota had no actual authority, he had at least apparent or ostensible authority to bind Defendants to the Stipulation in their trustee capacities. "As a general proposition the attorney-client relationship, insofar as it concerns the authority of the attorney to bind his client by agreement or stipulation, is governed by the principles of agency. Hence, the client as principal is bound by the acts of the attorney-agent within the scope of his actual authority (express or implied) or his apparent or ostensible authority; or by unauthorized acts ratified by the client." *Blanton v. Womancare, Inc.*, 38 Cal. 3d 396, 403 (1985) (internal quotations and citations omitted). "The authority thus conferred upon an attorney is in part apparent authority—i.e., the authority to do that which attorneys are normally authorized to do in the course of litigation manifested by the client's act of hiring an attorney—and in part actual authority implied in law." "It is, of course, accepted practice within the legal profession, and one that is commendable, for attorneys to rely upon representations made by other attorneys with respect to the scope of their authority. As in the case of any other agency, however, apparent authority is created, and its scope defined, by the acts of the principal in placing the agent in such a position that he appears to have the authority which he claims or exercises."

"Where ostensible authority exists, a principal is bound by acts of his agent . . . to those

persons only who have in good faith, and without want of ordinary care, incurred a liability or parted with value, upon the faith thereof." *Yanchor v. Kagan*, 22 Cal. App. 3d 544, 549–50 (1971) (internal quotations and citations omitted). "Under these provisions, if a principal by his acts has led others to believe that he has conferred authority upon an agent, he cannot be heard to assert, as against third persons who have relied and acted thereon in good faith, that he did not intend to confer such power. Thus, ostensible authority rests upon the doctrine of estoppel." "There is a strong presumption that actions of an attorney are within the scope of his employment, absent a showing of the adverse party's knowledge of restrictions thereon. The client as principal is bound by the acts of the attorney-agent within the scope of his actual ... apparent, or ostensible authority, especially where third persons have changed their position in justifiable reliance on the attorney's ostensible authority." *Phelps v. Kozakar*, 146 Cal. App. 3d 1078, 1082 (1983) (internal quotations and citations omitted). "Whether ostensible authority existed is a question of fact and may be implied from circumstances." *Yanchor*, supra, 22 Cal. App. 3d at 550. As the Court has surely noticed, the "800-pound gorilla in the room" is that the individual Defendants, Ms. Sandoval and Mr. Quiel, are exactly the same two people serving as trustees of the Trust – there are no other trustees. Consequently, when Defendants' counsel entered into the Stipulation to bind Defendants as trustees, Plaintiff's counsel had no reason whatsoever to suspect that Mr. LeVota was representing Defendants only in their individual capacity and not in their trustee capacity. This gave rise to a strong presumption that Mr. LeVota was representing Defendants in both their individual and trustee capacities with respect to the Stipulation, and Plaintiff's counsel did not even attempt to confirm and ensure that Defendants had authorized the Stipulation while wearing their "trustee hats." In justifiable reliance on Mr. LeVota's ostensible authority to bind Defendants to the Stipulation in their trustee capacities, Plaintiff's counsel changed their trial position by foregoing a hearing on the merits of Plaintiff's Motion to Amend, and thus Defendants are now estopped from claiming that the Trust was somehow dragged into the Stipulation without Defendants' knowledge or permission.

Even if, *arguendo* only, Mr. LeVota had neither actual nor apparent authority to bind

Defendants to the Stipulation in their trustee capacities, the Court would have found good cause to achieve the same result if a hearing had been held on the merits of Plaintiff's Motion to Amend. As argued in said motion, Defendants had to be bound as trustees because they hold legal title to trust property and are the real parties in interest for relief affecting the servient tenement.

Defendants also had to be bound individually because they personally engaged in and directed the conduct at issue. Trial evidence and Defendants' admissions established trustee ownership and control. Deeming the pleadings amended to conform to proof would have caused no prejudice, would have reflected how the case had been litigated from the outset, and would have corrected only a technical defect in capacity so that any injunction entered would be effective and enforceable. The relief sought in the Motion to Amend was necessary to ensure that any injunctive relief entered by the Court would bind the legal owner of the Serena Property, could not be evaded through capacity-based arguments such as the ones currently advanced in the Motion, and would afford complete and enforceable equitable relief based on the evidence presented at trial.

Based on the parties' Stipulation entered into the trial record and good cause having been

shown in the Motion to Amend, the Court has personal jurisdiction over Defendants in their dual capacities as individuals and trustees of the Trust, and thus the Judgment entered against Defendants is not void and cannot be set aside pursuant to CCP § 473(d).

Defendants' latest conspiracy theory is that Plaintiff's counsel Price, Postel & Parma LLP, Plaintiff's land-use consultant Eva Turenchalk, Santa Barbara County Planning & Development Department's Senior Planner Willow Brown, and Carpinteria-Summerland Fire Protection District Fire Marshal Michael LoMonaco engaged in a conniving mid-trial scheme aimed at altering evidence related to Plaintiff's 3200 Serena Avenue address, discrediting Defendants' trial testimony and perpetrating fraud on the Court.

Here is what actually happened in the real world.

On August 21, 2025, PPP sent a letter to the County and Ms. Brown with several comments on Defendants' pending Accessory Dwelling Unit application, including the concern that Defendants' bamboo fence blocking Plaintiff's easement was shown on the ADU plans and that the ADU application was using 3200 Serena Avenue – the address historically used by Plaintiff's employee dwelling. PPP's letter requested that the bamboo fence on the ADU plans should be called out as "unpermitted" rather than "existing" to avoid any confusion that the approval of the ADU permit would also permit the bamboo fence, and that all references to 3200 Serena Avenue be removed from the ADU plans. The letter also asked that Plaintiff's easement be shown on the ADU plans and that Ms. Brown keep PPP and Ms. Turenchalk updated on the processing of the ADU permit, which is a common request when someone is interested in a neighbor's permit application, particularly one that has the potential to affect Plaintiff's neighboring property.

On January 14, 2026, as part of her preparation for trial testimony scheduled for January 16, 2026, Ms. Turenchalk inquired with Ms. Brown regarding the status of Defendants' ADU application. Ms. Brown stated that the ADU application had already been approved as of December 29, 2025 (i.e., prior to the start of trial on January 5, 2026), and that the County had corrected Defendants' ADU plans by replacing 3200 Serena Avenue with Defendants' correct address 3196 Serena Avenue and by inserting a note regarding the permitting status of Defendants' bamboo fence.

On January 15, 2026, Ms. Brown emailed Ms. Turenchalk Defendants' ADU plans stamped approved on December 29, 2025. After she noticed that the County had not corrected all references to 3200 Serena Avenue on the ADU plans as part of the County's December 29, 2025, approval, Ms. Turenchalk emailed Ms. Brown with a request that the approved ADU plans show a consistent address throughout. Subsequently, Ms. Brown emailed Ms. Turenchalk a final and correct version of Defendants' ADU plans with the remaining references to 3200 Serena Avenue crossed out, which Plaintiff's counsel attempted to have admitted into trial evidence as part of Proposed Trial Exhibit 377; however, as noted in the Motion, the Court excluded that exhibit as hearsay and lacking foundation. On January 16, 2026, Ms. Turenchalk confirmed with Ms. Brown that the approved ADU plans and the associated Coastal Development Permit had been emailed to the ADU applicant, Defendant Tyler Quiel.

The facts set forth above clearly show that there was no mid-trial conspiracy to influence County decisions in Plaintiff's favor as to the 3200 Serena Avenue address – the County had already made those decisions prior to trial, by December 29, 2025, when Defendants' ADU plans were approved with references to 3200 Serena Avenue crossed out.

More importantly, however, Defendants' and Ms. Turenchalk's trial testimony related to the ADU application provided only a small portion of the facts forming the basis of the Court's decision with respect to Plaintiff's ownership of the 3200 Serena Avenue address and Plaintiff's mailbox servicing the same address. Plaintiff's principal, Robert Seidler, authenticated several water and gas utility bills for the Cottage listing its address as 3200 Serena Avenue, which were admitted into evidence as Trial Exhibit 319. Mr. Seidler then testified that the service address listed on the utility bills is the address for his Cottage – 3200 Serena Avenue. Tchakarov Decl., Ex. E. Mr. Seidler also testified that he has a mailbox on Serena Avenue servicing the Cottage and its 3200 Serena Avenue address. Christopher Price, a tenant residing at the Cottage between 2004 and 2009, testified that the address of the Cottage is 3200 Serena Avenue.

James Rickard, III, property manager for Plaintiff and Plaintiff's predecessor-in-interest, also testified that the address of the Cottage on Plaintiff's property was 3200 Serena Avenue.

Fire Marshal Michael LoMonaco testified at length during trial about the source of Defendants' mistaken belief that they own the 3200 Serena Avenue address. Supported by email correspondence between CSFPD and Defendants, admitted into evidence as Trial Exhibits 382 and 384. Mr. LoMonaco testified that back on February 23, 2023, CSFPD mistakenly assigned 3200 Serena Avenue to Defendants' ADU project and then corrected its error within hours on the same day by replacing it with 3202 Serena Avenue. Defendants were notified of the address correction by email, to which Defendants responded on March 15, 2023, thereby confirming receipt of the address correction notice. Based on these CSFPD records, when Mr. LoMonaco subsequently received Defendants' ADU application and plans, he crossed out references to 3200 Serena Avenue and replaced them with Defendants' 3196 Serena Avenue address before sending the ADU plans back to the County.

Despite their awareness of CSFPD's address assignment correction, Defendants continue to

stubbornly insist that 3200 Serena Avenue belongs to them and their ADU project. Defendants even admitted during trial that they stole Plaintiff's mailbox servicing Plaintiff's Cottage at 3200 Serena Avenue and replaced it with a locking mailbox of their own, to which only Defendants have access.

The facts set forth above, as established at trial, prove that the 3200 Serena Avenue address belongs to Plaintiff, and there is no inconsistency between the facts and the Judgment confirming Plaintiff's ownership of 3200 Serena Avenue and enjoining Defendants to return Plaintiff's stolen mailbox. Despite Defendants' claim of trial irregularities, the Court's decision is free of errors and would have been reached regardless of Defendants' and Ms. Turenchalk's trial testimony related to Defendants' ADU application. Accordingly, no grounds exist to set aside the Judgment or order a new trial under CCP §§ 663 and 657.

Defendants' trial counsel, Mr. LeVota, solemnly proclaimed in his closing statement that the jury had been "fair and impartial" and that Defendants had received a "fair trial." Apparently, Mr. LeVota was (again...) not speaking on behalf of his clients, who are now "grasping for straws" by asserting a laundry list of concocted trial irregularities.

■ Defendants complain that the Court did not admit into evidence several of Defendants' proposed trial exhibits containing Plaintiff's discovery responses from a prior lawsuit, while admitting Plaintiff's Trial Exhibit 340 containing text messages exchanged between Plaintiff, Defendants and third parties. As the Court explained multiple times during trial, the discovery responses were not admitted into evidence because Defendants' counsel acknowledged that he was not going to bring all of the responses to the jury's attention. Admitting all discovery responses into evidence would have required the Court and the jury to read a large number of irrelevant discovery responses that were never even mentioned during trial. Of course, the Court allowed Defendants' counsel to read every discovery response he deemed relevant and important to the Defense, and Plaintiff's principal, Mr. Seidler, was examined at length about all pertinent discovery responses he had provided in the prior litigation.

The difference between Defendants rejected evidence and Plaintiff's admitted Trial Exhibit 340 is that most, if not all, of the text messages contained in the latter were read into the trial record, brought to the jury's attention and used by Plaintiff's trial counsel in their trial examination of various witnesses. Therefore, the Court properly admitted into evidence Plaintiff's Trial Exhibit 340, while rejecting Defendants' proposed trial exhibits containing a large number of admittedly irrelevant discovery responses.

■ Defendants complain that the Court did not allow Ms. Sandoval to explain why she

believed the bridge at issue in this litigation was unsafe by referencing a structural engineer's report contained in Defendants' proposed trial exhibit 107, which the Court excluded from evidence on hearsay grounds. As the Court properly explained during trial, Ms. Sandoval attempted to convey an expert's opinion into the trial record, which was also hearsay, under the guise of her state of mind after reading the expert's report. The Court ultimately allowed Ms. Sandoval to state that after reading the report, she came to the conclusion that the bridge was not safe. Any references to the findings and conclusions reached in the expert report were thus properly excluded from the record.

■ Defendants complain that the Court permitted Plaintiff to call Fire Marshal Michael

LoMonaco as a rebuttal witness, despite Defendants' objection that he was an undisclosed expert offering technical opinions. Actually, the Court stated that Defendants' objection would be "deal[t] with ... on a question-by-questions basis," and subsequently, the Court sustained multiple objections by Defendants' counsel on the same grounds during Mr. LoMonaco's testimony.

■ Defendants complain that the Court did not allow Defendants' sole non-party witness, David Tetzlaff, to testify about his understanding of communications with Plaintiff's land-use consultant, Eva Turenchalk, during a prior lawsuit. Mr. Tetzlaff is

an attorney, who represented a party adverse to Plaintiff in the prior litigation, in which he exchanged emails with Ms. Turenchalk related to access to Plaintiff's property. Although the subject emails were admitted into evidence, the Court properly exercised its discretion and did not allow Mr. Tetzlaff to offer expert legal opinions and to speculate about what Ms. Turenchalk meant to say in her emails.

■ Defendants complain that their objections were overruled and their testimony or

questioning was stricken at a higher rate compared to Plaintiff's. If true, is it possible that this statistic resulted from the difference between counsel for the parties in terms of trial preparedness and litigation skills?

■ Defendants complain that the Court struck Ms. Sandoval's testimony repeatedly and

"admonished" her by saying: "Miss Sandoval, I am asking you to do the best you can to answer the question directly. I know you are trying." During her testimony, Ms. Sandoval gave very few straight answers and her evasiveness necessitated multiple requests by Plaintiff's counsel to strike her testimony as non-responsive. For example, Ms. Sandoval had an extremely hard time answering the simple question: "Isn't it true that this last summer, on or about June 2, 2025, the gas company, So Cal Gas, sent workers to your property to perform maintenance and repairs to the cottage gas meter on the easement area?" Instead of answering with a straight Yes or No, Ms. Sandoval attempted to offer into the record extraneous information she was never asked about. The Court commendably did not admonish Ms. Sandoval and instead attempted to accommodate her and put her at ease so she could gather her thoughts and actually respond to the question, which she failed to do over and over again, thereby causing parts of her testimony to be stricken from the record. The Court also encouraged Plaintiff's counsel on several occasions to move on to his next question for Ms. Sandoval despite her evasive testimony.

■ Defendants complain that the Court may have viewed the subject real property prior to trial in the presence of Plaintiff's counsel only. Defendants' paranoia apparently knows no bounds... When asked about this remark in his draft statement of decision, Judge Anderle responded that "it was a misstatement" and that he "would not have viewed the property without counsel," leaving no doubt that the Court never viewed the property.

■ Defendants complain that the "[j]ury selection process exhibited systematic exclusion of prospective Latino jurors" because "Defendant Sandoval is a Latina woman."

In their desperation to find non-existent trial irregularities, Defendants have managed to pull even the race card... Plaintiff's counsel was not aware of Ms. Sandoval's alleged Latino heritage until receiving the Motion, and there was never any effort to exclude jurors based on their racial profile. No objection was made by Defendants' trial counsel, Mr. LeVota, on any such basis during jury voir dire.

Accordingly, Defendants received a fair trial without any irregularities, and they have no

grounds to seek a new trial pursuant to CCP § 657.

Defendants are unhappy with the Judgment because it provides additional relief not sought

in Plaintiff's Complaint. However, as the Court's Final Statement of Decision aptly pointed out, equity looks at substance over form. Cal. Civ. Code § 3528. When a court sits in equity, its principal concern is "to promote justice, acting through its conscience and good faith," and its powers "are not cribbed or confined by the rigid rules of law." *Hirshfield v. Schwartz*, 91 Cal. App. 4th 749, 769-71 (2001). "Equity does not wait upon precedent which exactly squares with the facts in controversy, but will assert itself in those situations where right and justice would be defeated but for its intervention," and it has "always been the pride of courts of equity that they will so mold and adjust their decrees as to award substantial justice according to

the requirements of the varying complications that may be presented to them for adjudication.” *Times—Mirror Co. v. Superior Court*, 3 Cal.2d 309, 331 (1935).

In exercising its equitable power, “the court is not strictly limited to the particular relief

requested in the prayer of the complaint.” *Dawson v E. Side High School Dist.*, 28 Cal. App. 4th 998, 1040 (1994). A court sitting in equity may instead exercise its full range of powers to accomplish complete justice between the parties, restoring, if necessary, the status quo ante as nearly as may be achieved. *Cortez v. Purolator Air Filtration Products Co.*, 23 Cal. 4th 163, 177 (2000). “It is a fundamental duty of the court to provide equity to all parties and fully dispose of the issues between the parties.” *In re Marriage of Dancy*, 82 Cal. App. 4th 1142, 1149 (2000). The purpose of this principle is to avoid multiple litigation and to do full and complete justice. *St. Sava Mission Corp. v. Serbian Eastern Orthodox Diocese*, 223 Cal. App. 3d 1354, 1367 (1990).

In this case, the Judgment confirmed the existence and validity of Plaintiff’s roadway

easement over Defendants’ property for access to and from Serena Avenue. Based on the facts proven at trial and in an effort to afford complete relief between the parties, the Court’s Judgment also confirmed Plaintiff’s ownership of the 3200 Serena Avenue address (a claim asserted in paragraph 8 of the Complaint) and enjoined Defendants to return Plaintiff’s stolen mailbox. 3200 Serena Avenue address and Plaintiff’s mailbox service at the same address are issues closely interrelated with the easement dispute between the parties. Establishing the validity of Plaintiff’s access easement to Serena Avenue without confirming Plaintiff’s ownership of an address on Serena Avenue or Plaintiff’s ownership of a mailbox servicing that same address would not have fully disposed of all issues between the parties. Similarly, the Judgment enjoined Defendants to cooperate in the processing of Plaintiff’s Coastal Development Permit application for bridge repairs, which has been stuck in limbo at the County due to the Parties’ easement dispute. What good is awarding Plaintiff its easement if Defendants are also not compelled to facilitate the process of repairing the bridge on the same easement?

Finally, to do full and complete justice between the parties, the Judgment established Plaintiff’s right to maintain and preserve the subject bridge within its full structural footprint based on trial evidence proving, *inter alia*, that removal of the prescriptive easement area from the bridge would compromise its structural integrity. Accordingly, there are no errors in the Judgment and no good cause exists to vacate or modify it under CCP § 663.

For all of the foregoing reasons, no good cause exists to vacate or modify the Judgment, or to order a new trial, and Plaintiff respectfully urges this Court to deny the Motion in its entirety.

The Court’s Conclusions

Section 473(d) of the California Code of Civil Procedure (“CCP”) provides, in pertinent part, that: “The court ... may, on motion of either party after notice to the other party, set aside any void judgment or order.” Under CCP § 473(d), “a party may challenge judgments that are absolutely void. That defect occurs when the trial court rendering the judgment lacked jurisdiction in the fundamental sense, that is, lacked authority over the subject matter or parties.” *LAOSD Asbestos Cases*, 28 Cal. App. 5th 862, 870 (2018) (internal quotations and citations omitted). “Ordinarily, acts in excess of jurisdiction are subject to harmless error analysis, that is, they support a reversal of the judgment only upon a showing of prejudice. Furthermore, challenges to a judgment based on the defect may be barred under principles of estoppel, forfeiture, and waiver.” *Id.* at 871 (citations omitted).

Pursuant to CCP § 663(1), a court may set aside and vacate a judgment only upon a finding

that there was an “[i]ncorrect or erroneous legal basis for the decision, not consistent with or not supported by the facts.” A motion to vacate under CCP § 663 may only be brought when “the trial judge draws an incorrect legal conclusion or renders an erroneous judgment upon the facts found by it to exist.” *Cnty. of Alameda v. Carleson*, 5 Cal. 3d 730, 738 (1971). “A

motion to vacate under [CCP] § 663 is a remedy to be used when a trial court draws incorrect conclusions of law or renders an erroneous judgment on the basis of uncontroverted evidence.” *Plaza Hollister Ltd. P’ship v. Cnty. of San Benito*, 72 Cal. App. 4th 1, 14 (1999). Under CCP § 663, a court cannot reconsider any of its factual findings. See *Knapp v. City of Newport Beach*, 186 Cal. App. 2d 669, 682 (1960) (holding that CCP § 663 does not authorize additional findings of fact, and that findings may not be disturbed by the trial court after they have been filed and judgment has been entered thereon). The party moving to set aside a judgment under CCP § 663 bears the burden of showing the inconsistency “materially affected his or her substantial rights, entitling the party to a different judgment.” *In re Marriage of Rothrock*, 159 Cal. App. 4th 223, 237 (2008).

A party requesting a new trial pursuant to CCP § 657 bears the burden of establishing

entitlement to relief. *Donovan v. Poway Unified Sch. Dist.*, 167 Cal. App. 4th 567, 625 (2008). In order to secure a new trial, the moving party must demonstrate, *inter alia*, one or more of the following: “irregularity in the proceedings” (§ 657(1)); “misconduct of the jury” (§ 657(2)); “accident or surprise” (§ 657(3)); “newly discovered evidence” (§ 657(4)); “excessive damages” (§ 657(5)); “insufficiency of the evidence” (§ 657(6)); or “error in law” (§ 657(7)). “The right to a new trial is purely statutory, and a motion for a new trial can be granted only on one of the grounds enumerated in the statute.” *Fomco, Inc. v. Joe Maggio, Inc.*, 55 Cal. 2d 162, 166 (1961). Trivial or non-prejudicial errors do not warrant a new trial. See *Sherman v. Kinetic Concepts, Inc.*, 67 Cal. App. 4th 1152, 1161 (1998) (“Prejudice is required: the trial court is bound by the rule of California Constitution, article VI, section 13, that prejudicial error is the basis for a new trial, and there is no discretion to grant a new trial for harmless error.”). Under CCP § 657, “[a] new trial shall not be granted upon the ground of insufficiency of the evidence ..., unless after weighing the evidence the court is convinced from the entire record, including reasonable inferences therefrom, that the court or jury clearly should have reached a different verdict or decision.” “A motion for new trial predicated on the ground of the insufficiency of the evidence is addressed to the sound discretion of the trial judge; his action in refusing a new trial will not be disturbed on appeal unless it is affirmatively shown that he abused his discretion.” *David v. Hernandez*, 226 Cal. App. 4th 578, 588–89 (2014).

An “irregularity in the proceedings” does not arise absent an overt act causing severe prejudice to a party’s right to a fair and impartial trial. CCP § 657(1). “[W]hether, under all the circumstances, an irregularity has materially affected substantial rights and prevented a fair trial is addressed to the discretion of the trial court which, having heard and seen the witness[es] and having knowledge of circumstances which may not be produced in the record, is in better position than the appellate court to determine the effect.” *Gray v. Robinson*, 33 Cal. App. 2d 179, 182 (1939). “[T]he moving party must show affirmatively that both he and his counsel were ignorant of the facts constituting the irregularity charged until the rendition of the verdict” *Id.* at 183; *Cembrook v. Sterling Drug Inc.*, 231 Cal. App. 2d 52, 67-68 (1964).

California trial courts’ discretion to grant motions for judgment notwithstanding the verdict is “severely limited.” *In re Coordinated Latex Glove Litigation*, 99 Cal. App. 4th 594, 606 (2002); *Garretson v. Harold I. Miller*, 99 Cal. App. 4th 563, 568 (2002). California Code of Civil Procedure section 629(a) provides: “The court, ... either on its own motion, after five days’ notice, or on motion of a party against whom a verdict has been rendered, shall render judgment in favor of the aggrieved party notwithstanding the verdict whenever a motion for a directed verdict for the aggrieved party should have been granted had a previous motion been made.” Thus, a court’s power to grant a judgment notwithstanding the verdict is identical to its power to grant a directed verdict. If the evidence is conflicting or if several reasonable inferences may be drawn, the motion for judgment notwithstanding the verdict should be denied. *Hauter v. Zogarts*, 14 Cal.3d 104, 110 (1975); *Alexander v. State of California Ex. Rel Dept. of Transportation*, 159 Cal. App. 3d 890, 896 (1984). In essence, a motion for judgment notwithstanding the verdict is a demurrer to the evidence that challenges whether the evidence is sufficient to prove the claims and/or defenses asserted by the opposing party and embodied in the jury verdict. *Hauter*, *supra*, 14 Cal.3d at 110. In determining the sufficiency of the evidence, the Court must presume that all evidence in support of the verdict is true (*Moore*, *supra*, 5 Cal. App. 3d at 733); but may not weigh the evidence or determine the credibility of witnesses. *Hauter*, *supra*, 14 Cal.3d at 110. Furthermore, conflicting evidence must be resolved against the moving party, as the party securing the verdict is entitled to the benefit of every favorable inference that may be reasonably drawn from the evidence and to have all conflicts in evidence resolved in its favor. *Castro v. State of California*, 114 Cal. App. 3d 503, 507 (1981).

After the Court reviews the evidence within the confines of the foregoing, if there is any

substantial evidence that supports the jury's verdict, the Court must deny a motion for judgment notwithstanding the verdict. *Begnal v. Canfield & Associates, Inc.*, 78 Cal. App. 4th 66, 72 (2000). In the context of a motion for judgment notwithstanding the verdict filed by a defendant, the "substantial evidence" test is determined by disregarding the defendant's evidence and giving the plaintiff's evidence all the value to which it is legally entitled and indulging in every legitimate inference that may be drawn from it. *Reynolds v. Willson*, 51 Cal.2d 94, 99 (1958). With respect to such a motion brought by a plaintiff, judgment notwithstanding the verdict is only proper where a defense verdict is unsupportable as a matter of law – i.e., where the evidence requires a verdict in the plaintiff's favor as a matter of law. *Jach v. Edson*, 255 Cal. App. 2d 96, 99 (1967).

Indeed, a judgment notwithstanding the verdict should be denied if there is a conflict in the evidence (*Espinoza v. Rossini*, 247 Cal. App. 2d 40, 47 (1966)); where more than one inference may be drawn from the evidence (*Shannon v. Thomas*, 57 Cal. App. 2d 187, 192-93 (1943)); or where the verdict is sustained by sufficient evidence (*Reuther v. Viall*, 62 Cal.2d 470, 474-75 (1965)) or substantial evidence.

In other words, a motion for judgment notwithstanding the verdict may be granted only if it appears from the evidence, viewed in a light most favorable to the party securing the verdict, that there is no substantial evidence to support the verdict.

The Court's Conclusion re: the applicable law

The Court met the applicable law when formulating its conclusions.

Turning now to the facts of the lawsuit itself.

1. The PoloDonkey analysis of the issues is very logical, spot on, and accurate. The Court finds it persuasive, and the Court accepts that analysis and adopts it as its own.
2. The motion(s) made by the Defense are totally without merit. The fact that they have thrown their trial counsel, Mr. LaVota, under the bus speaks volumes about their mischaracterization of the facts and the applicable law.
3. But it is very important to recognize the gorilla in the tent that totally erases any merit to any argument or claim made here by the Defense.
4. This case was tried by the Court on the equitable causes of action and to a jury on the jury issues at the same time. That is not commonly done. Most often a Court will try the equity counts first and separate from the jury counts.
5. The Court and the jury came to same conclusion; PoloDonkey should prevail.
6. WHY DID THE COURT AND THE JURY COME TO THE SAME CONCLUSION?
7. The Court and apparently the jury did not believe the Defendants evidence BUT did believe the evidence submitted by PoloDonkey.
8. We can retry this case again, and again, and again -- but the outcome is going to be the same because there was NO creditable testimony offered by the Defendants. This Court weighed and reported the creditability of the witnesses in its decision. This Court in its decision on the equity issues pointed out clearly who was creditable, believable, and persuasive. It was NOT the defense – IT WAS the Plaintiffs - PoloDonkey. That's the gorilla in the tent and the bottom line here.

9. The Court repeats below and renews – with the same emphasis that was reported in its decision - what this Court said in its decision.

John Hebda Testified

Observations of this Testimony

Works in the title business; Findings: Very creditable; great courtroom demeanor; the recorded documents and his testimony clearly supported the Plaintiff's theory of the case; testimony was not tainted by the cross examination; must wait until all the evidence is in and until I hear closing arguments before making any decision.

Robert Seidler Testified

Observations of this Testimony

Findings: Very creditable; believable; excellent courtroom demeanor; the Court was not impressed by the Defendants actions as he testified about that; a vast amount of the cross examination³ was devoted to an effort to impeach the witness by using previous discovery in another case and at times from the transcript of this trial, but it was clearly unsuccessful; it was more time consuming than it was productive; it was without merit; the witness was not impeached by these efforts; indeed his responses were sincere, thoughtful, reasonable; the cross examination was very extensive and obviously not scripted; at many times it was repetitive; the Court was impressed by this witnesses resilience and consistency; his testimony supports his theory of the case; must wait until all the evidence is in and until I hear closing arguments before making any decision.

James Rickard Testified

Observations of this Testimony

Called by the Plaintiff; Findings: Creditable; excellent courtroom demeanor; believable; had significant contact with the property at issue; testimony clearly supported the theory of Plaintiff's case; must wait until all the evidence is in and until I hear closing arguments before making any decision.

Christopher Price Testified

Observations of this Testimony

Called by Plaintiff; Findings: Creditable; supports the theory of the Plaintiff's case; must wait until all the evidence is in and hear closing arguments before making any decision.

Donna Hammel Testified

Observations of this Testimony

Findings: Creditable; thoughtful; likeable; seemed to be a little confused at times; her email messages generally confirmed Plaintiff's testimony; must wait until all the evidence is in and hear closing arguments before making any decision.

Eva Turenchalk Testified

Observations of this Testimony

Findings: Creditable; well informed and very persuasive witness; supported the Plaintiff's theory of the case; must wait until all the evidence is in and until I hear closing arguments before making any decision.

Tyler Quiel Testified

Observations of this Testimony

Called by Plaintiff under 776; Findings: Thoughtful; articulate; bright; liked him. But did not find his testimony persuasive; it did not support the Defendants theory of the case; must wait until all the evidence is in and until I hear closing arguments before making any decision.

Diana Sandoval Testified

Observations of this Testimony

Called by Plaintiff under 776; Findings: Thoughtful; articulate; bright; liked her; but her testimony and courtroom demeanor were not persuasive; she was not a good witness for her theory of the case; must wait until all the evidence is in and wait until I hear closing arguments before making any decision.

David Tetzlaff Testified

Observations of this Testimony

Called by the Defendants; lawyer; percipient witness; not a designated expert.

Findings: His testimony was not helpful to the case; must wait until all the evidence is in and wait until I hear closing arguments before making any decision.

Michael LoMonaco Testified

Observations of this Testimony

Fire Marshall; Carpinteria Fire District; called by Plaintiff on rebuttal.

Findings: Creditable and believable; very impressive witness; good courtroom demeanor. His testimony was helpful to the Plaintiff's theory of the case; must wait until all the evidence is in and wait until I hear closing arguments before making any decision.

10. Having adopted the very thorough and comprehensive analysis provided by the PoloDonkey lawyers and having found the Defendants lawyers' analysis and arguments are without merit this Court should and will deny the Motion(s).

Judges

Judge Thomas Anderle

Dept. 3 SB-Anacapa

1100 Anacapa Street P.O. Box 21107

Santa Barbara, CA 93121-1107

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